



Preston Corporation Act 1964

CHAPTER xviii

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ELIZABETH II



1964 CHAPTER xviii

An Act to confer further powers on the mayor, aldermen and burgesses of the borough of Preston, to make further provision in reference to the Ribble Navigation, the health, local government, improvement and finances of the borough, to confer further powers on the constituent councils of the Preston and District Water Board in regard to the recovery of rates and charges on behalf of the board; and for other purposes.

[10th June 1964]

WHEREAS—

(1) The county borough of Preston (hereinafter referred to as “the borough”) is a municipal borough under the management and local government of the mayor, aldermen and burgesses of the borough acting by the council (hereinafter referred to as “the Corporation”):

(2) It is expedient to confer further powers on the Corporation in regard to their Ribble Navigation undertaking:

(3) It is expedient that further and better provision should be made with reference to lands, streets, buildings and markets and the health, local government and improvement of the borough:

(4) It is expedient to make further provision with regard to the finances of the borough as by this Act provided:

(5) It is expedient that the further powers as by this Act provided should be conferred upon the Corporation:

(6) It is expedient that the provisions of section 24 of the Preston and District Water Board Order, 1959, be extended as in this Act provided:

(7) It is expedient that the other provisions contained in this Act should be enacted:

(8) The purposes of this Act cannot be effected without the authority of Parliament:

(9) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Preston Corporation Act 1964.

(2) The Ribble Navigation and Preston Dock Act, 1883, the Ribble Navigation &c. Act, 1888, the Ribble Navigation Act, 1889, the Ribble Navigation Act, 1890, the Ribble Navigation Act, 1892, the Ribble Navigation Act, 1896, and the Ribble Navigation Act, 1905, and so much of the Preston Corporation Acts, 1914, 1921, 1931, 1947 and 1952, and this Act as relates to the Ribble Navigation may be cited together as the Ribble Navigation Acts, 1883 to 1964.

Division of
Act into
Parts.

2. This Act is divided into Parts, as follows:—

Part I.—Preliminary.

Part II.—Ribble Navigation.

Part III.—Lands.

Part IV.—Streets.

Part V.—Public safety.

Part VI.—Cultural activities.

Part VII.—Finance, superannuation, etc.

Part VIII.—Miscellaneous.

Part IX.—Protective provisions.

Part X.—General.

3.—(1) In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by sections 90 and 343 of the Public Health Act, 1936, shall have the same respective meanings unless there be something in the subject or context repugnant to such construction.

PART I
—cont.
Interpretation.

(2) In this Act unless the subject or context otherwise requires—

“ the Act of 1933 ” means the Local Government Act, 1933;

“ the Act of 1936 ” means the Public Health Act, 1936;

“ the appointed day ” has the meaning assigned to it by section 87 (The appointed day) of this Act;

“ the borough ” means the county borough of Preston;

“ contravention ” includes a failure to comply and
“ contravene ” shall be construed accordingly;

“ the Corporation ” means the mayor, aldermen and burgesses of the borough;

“ the council ” means the council of the borough;

“ daily fine ” means a fine for each day on which an offence is continued after conviction;

“ enactment ” includes an enactment in this Act and in any general or local Act, and any order, byelaw or regulation for the time being in force within the borough;

“ the existing Acts ” means the Ribble Navigation and Preston Dock Act, 1883, the Ribble Navigation &c. Act, 1888, the Ribble Navigation Act, 1889, the Ribble Navigation Act, 1890, the Ribble Navigation Act, 1892, the Ribble Navigation Act, 1896, the Ribble Navigation Act, 1905, and so much of the Preston Corporation Acts, 1914, 1921, 1931, 1947 and 1952, as relates to the Ribble Navigation and each of those Acts is referred to in this Act as the Act of the year in which it was passed;

“ the general rate fund ” means the general rate fund of the borough;

“ the Harbours Clauses Act, 1847 ” means the Harbours, Docks and Piers Clauses Act, 1847;

“ the Lytham St. Annes Corporation ” means the mayor, aldermen and burgesses of the borough of Lytham St. Annes;

“ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act, 1952;

“ the Minister ” means the Minister of Transport;

“ Minister of the Crown ” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946;

PART I
—cont.

- “ the signed plan ” means the plan of which copies have been signed in quadruplicate by the Right Honourable the Lord Merthyr the chairman of the committee of the House of Lords to which the Bill for this Act was referred, of which plan one copy has been deposited in the office of the Clerk of the Parliaments in the House of Lords, one copy in the Private Bill Office of the House of Commons, one copy at the Ministry of Transport and one copy in the office of the town clerk at Municipal Building, Preston;
- “ statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- “ telegraphic line ” has the same meaning as in the Telegraph Act, 1878;
- “ the town clerk ” means the town clerk of the borough;
- “ Trinity House ” means the corporation of Trinity House of Deptford Strond.

(3) (a) In the Ribble Navigation Acts, 1883 to 1964, unless the subject or context otherwise requires—

- “ the dock ” means the dock authorised by the Act of 1883 as amended by the Act of 1888, and includes the lock and entrance thereto, the tidal basin and the quays, wharves, bridges, sheds, structures, stations, platforms, railways, roads, lands, works and buildings situated within the dock estate;
- “ the dock estate ” means the dock estate of the Corporation which comprises the area within the outer edge of the green line on the signed plan;
- “ hover vehicle ” means a vehicle, however propelled, designed to be supported on a cushion of air;
- “ hydrofoil vessel ” means a vessel, however propelled, designed to be supported on foils;
- “ lighthouses ” and “ buoys and beacons ” shall have the same respective meanings as in section 742 of the Merchant Shipping Act, 1894;
- “ the limits of the harbour ” means the limits of the harbour of the Ribble Navigation which comprises the area within the outer edge of the red line on the signed plan;
- “ navigable channel ” means that part of the river Ribble from the dock to the seaward limits of the harbour which is marked for the purposes of navigation with lighthouses, buoys or beacons;
- “ the Ribble Navigation”, “ the port and harbour of Preston ” and “ the harbour ” mean the port and

harbour of Preston as defined by subsection (1) of section 5 (Limits of harbour and of dock estate) of this Act and as constructed and constituted by or by virtue of the Ribble Navigation Acts, 1883 to 1964;

“the Ribble Navigation undertaking”, “the dock undertaking” and “the undertaking” mean the Ribble Navigation undertaking of the Corporation as from time to time authorised;

“seaplane” includes a flying boat and any other aircraft designed to manoeuvre on the water but does not include a hover vehicle or hydrofoil vessel;

“vessel” includes—

(i) any ship, boat, raft or craft of every class or description, howsoever navigated or propelled, and (except for the purpose of levying rates), a hover vehicle, a hydrofoil vessel and a seaplane on the surface of the water; and

(ii) for the purposes of section 15 (Powers with respect to disposal of wrecks) and section 16 (Protection of Crown interests in wrecks) of this Act, an aircraft of any description (whether designed to manoeuvre on the water or not);

and in relation to goods conveyed or intended to be conveyed by a hover vehicle, hydrofoil vessel or seaplane, “shipped” means loaded thereon, “unshipped” means unloaded therefrom and “shipping”, “unshipping” and “shipper” shall be construed accordingly.

(b) In the existing Acts references to vessels propelled by steam and steam tenders or steam tugs shall be construed as including vessels propelled by other means.

(4) Nothing in subsection (3) of this section shall extend to authorise a harbour master or other officer of the Corporation to require the dismantling of a hover vehicle, hydrofoil vessel or seaplane, or any part thereof, or any alteration or modification to its structure or equipment which will affect its safety or manoeuvrability.

(5) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment, including this Act.

PART II

RIBBLE NAVIGATION

4.—(1) The Harbours Clauses Act, 1847, except sections 6 to 13, 16 to 19, 23 to 26, 31, 49, 50, 67, 84 to 90, 95, 99 and the proviso to section 83 thereof shall (subject to the provisions of subsection (2) of this section) be deemed to be incorporated with each of the Harbours Clauses Act, 1847.

PART II
—cont.

Ribble Navigation Acts, 1883 to 1964, so far as applicable to those respective Acts and not varied by or inconsistent with those Acts or any of them.

(2) (a) For the purposes of the incorporation of any provisions of the Harbours Clauses Act, 1847, with the Ribble Navigation Acts, 1883 to 1964, and in the application of any provisions of the said Act of 1847 to the Corporation—

- (i) the expression “special Act” shall mean and include each and every Act with which the Harbours Clauses Act, 1847, or any part thereof is incorporated by this section;
- (ii) the expression “the prescribed limits” shall mean the limits of the harbour;
- (iii) the expression “harbour, dock or pier” shall mean (as the circumstances require) the harbour or the dock;
- (iv) the expression “the undertakers” shall mean the Corporation;
- (v) the word “vessel” shall have the meaning given to that word by subsection (3) of section 3 (Interpretation) of this Act;
- (vi) section 73 of the Harbours Clauses Act, 1847, shall have effect as if after the word “stones” the words “chattel, article” were inserted.

(b) Section 28 of the Harbours Clauses Act, 1847, in its application to the Act of 1883, the Act of 1888, the Act of 1889, the Act of 1890, the Act of 1892, the Act of 1896, the Act of 1905, the Act of 1914, the Act of 1921 and the Act of 1931 shall have effect as if in the said section for the words from “or any packet boat” to “any such packet boat or packet” there were substituted the words “or any vessel employed by or under the authority of the Postmaster General for the conveyance under contract of postal packets as defined by the Post Office Act, 1953, not being a vessel also conveying passengers or goods for hire or reward or any mail bag as so defined conveyed by any such vessel”.

(3) The provisions of subsections (1) and (2) of this section shall supersede any provision of any of the existing Acts which incorporates or implies the incorporation therewith of the Harbours Clauses Act, 1847, or any part or provision of that Act, and the provisions of the existing Acts mentioned in Part I of Schedule 1 to this Act (which provisions relate to the incorporation with those Acts of the Harbours Clauses Act, 1847, or some parts or provisions of that Act) are hereby repealed.

Limits of
harbour and
of dock
estate.

5.—(1) As from the passing of this Act the limits of the harbour shall be the area which is included within the outer edge of the red line on the signed plan, which area together with the dock shall be the port and harbour of Preston and the Corporation shall be the port and harbour authority thereof.

(2) The dock estate shall comprise and shall be deemed to have always comprised the area within the outer edge of the green line on the signed plan and the roads on the dock estate which are maintained by the Corporation as part of the Ribble Navigation undertaking shall not be deemed to be roads maintainable at the public expense. All public rights of way (if any) as may exist over Chain Caul Road are hereby extinguished.

(3) Copies of the signed plan deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as prima facie evidence of the contents of such plan so far as it relates to the limits of the harbour and the dock estate.

6. In addition to the rates, tolls, dues or charges which they may demand and take in pursuance of the Ribble Navigation Acts, 1883 to 1964, the Corporation may demand and take for light dues of and from every master, owner, agent or consignee of every vessel which shall, at any time, enter the navigable channel and which passes any lighthouse, buoy or beacon and derives benefit therefrom a charge not exceeding two shillings per net register ton once in every year: Light dues.

Provided that one moiety only of the said last-mentioned dues shall be charged on any vessel which shall be forced into the navigable channel by the enemy, by stress of weather or by receiving damage at sea and shall not discharge or unload any part of her cargo in the harbour.

7.—(1) Subject to the provisions of the proviso to subsection (1) of section 13 (Moorings, etc.) of this Act the Corporation may demand and take on or in respect of hover vehicles and hydrofoil vessels— Rates on hover vehicles and hydrofoil vessels.

(a) entering, using or leaving the part or parts of the harbour in respect of which the Corporation may from time to time be authorised to charge tolls for the entering, using or leaving thereof by vessels; or

(b) using any moorings, landing places or hards belonging to the Corporation and there embarking or disembarking passengers or loading or discharging cargo;

such rates as the Corporation may determine and as shall be approved by the Minister.

(2) In section 28 of the Harbours Clauses Act, 1847 (which relates to the exemption of certain vessels from harbour rates), as incorporated with this Act, the expression “vessel” shall be deemed to include any such hover vehicles and hydrofoil vessels.

PART II
—cont.

Power to compound for rates on hover vehicles, hydrofoil vessels and seaplanes.

8. The Corporation may from time to time agree with the owner of a hover vehicle, hydrofoil vessel or seaplane liable to pay rates to the Corporation for entering, using or leaving the harbour for the payment of a fixed sum payable in advance, as composition by the year or shorter period for the rates payable during the period of composition, but so that no preference be in any case given to any person over any other person using the harbour under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Act.

Maintenance of training walls, etc.

9. The Corporation shall maintain and keep in good repair so much of the banks of the river Ribble vested in them and any of the training walls or other works constructed or provided by them or their predecessors under the Acts relating to the Ribble Navigation.

Corporation may provide dredgers, etc.

10.—(1) The Corporation may from time to time purchase, contract for or hire and may maintain and use dredgers, hoppers, barges or any vessel—

- (a) required for the purposes of the Ribble Navigation undertaking; and
- (b) as may be necessary or expedient for or in relation to any of the purposes mentioned in section 17 (Power to dredge Ribble Navigation) of this Act.

(2) In addition to the purposes referred to in paragraph (b) of subsection (1) of this section the Corporation may purchase, hire and provide and may maintain and use all necessary dredging and other machines, engines, craft, machinery and appliances as may be necessary or expedient.

(3) Any electrical power used pursuant to this section shall be so used and any electrical works or apparatus purchased, hired, provided, maintained or used pursuant to this section shall be so constructed, laid or erected and so maintained and used as to prevent any interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line.

Power to hire out plant.

11. The Corporation may let upon hire (with or without the services of their employees) on such terms as they think fit any vessel, cranes, hoists, plant, equipment or other property belonging to or leased by them for the purposes of the Ribble Navigation undertaking.

12.—(1) The Corporation may, with the consent of Trinity House, provide and place inside or outside the harbour one or more lightships or buoys for the guidance of vessels entering or leaving the harbour.

PART II
—cont.

Power to erect
and place
lights, buoys,
etc.

(2) The Corporation may, with the consent of Trinity House, provide and erect or place any lighthouses, buoys and beacons for the guidance of vessels within the limits of the harbour.

(3) The Corporation may maintain and repair any lightship, lighthouse, buoy or beacon provided, erected or placed by them under this section.

13.—(1) The Corporation may, for the purposes of the Ribble Navigation undertaking, provide and place in the harbour moorings, buoys and like apparatus and conveniences for vessels:

Moorings, etc.

Provided that the Corporation shall not in the exercise of their powers under this subsection place any moorings, buoys or apparatus or conveniences for the use of any hydrofoil vessels or hover vehicles, except those used by the Corporation or by pilots, in any part of the harbour to the north of the navigable channel which is vested in the Lytham St. Annes Corporation without the consent of that corporation.

(2) The Corporation may demand, receive and recover in respect of any vessel using any of the moorings, buoys or like apparatus or conveniences provided by the Corporation under this section or moored to the banks belonging to the Corporation such charges as may from time to time be prescribed by the Corporation and approved by the Minister.

14. The Corporation may upon any lands owned or occupied by them construct, improve and maintain all such railways, sidings, junctions, turntables, traverses, stations, approaches, roads, crossings, footpaths, gates, offices, warehouses, sheds, workshops, toll-houses, toll-gates, buildings, sewers, drains, culverts, quays, wharves, wharf walls, locks, retaining walls, river walls, basins, dams, embankments, sluices, jetties, piers, groynes, shipping places, staithes, stairs, stages, gantries, cranes, hoists, drops, dolphins, bridges, caissons, dock gates, transporters, coal hoists, tips, oil tanks, reservoirs, pipelines, hydraulic, gas and electric mains and other works and conveniences as they shall think necessary for the improvement or maintenance of the harbour:

Power to
make
subsidiary
works.

Provided that any electric mains and works executed by the Corporation under the provisions of this section shall be so

PART II
—cont.

constructed, maintained and used as to prevent any interference with any telegraphic line belonging to or used by the Postmaster General or with telegraphic communication by means of any such line:

Provided further that nothing in this section shall authorise the execution of any works on, under or over any tidal waters or tidal lands below the level of mean high-water springs except in accordance with plans and sections approved by the Minister and subject to any conditions and restrictions imposed by the Minister before the works are begun.

Powers with
respect to
disposal of
wrecks.

15.—(1) In their application to the Corporation sections 530 and 532 of the Merchant Shipping Act, 1894, shall have effect—

(a) subject to the provisions of the next following section; and

(b) in relation to a vessel sunk, stranded or abandoned before, as well as after, the passing of this Act.

(2) Subject to subsection (3) of this section, and to any enactment for the time being in force limiting their liability the Corporation may recover as a simple contract debt from the owner of any vessel in relation to which they have exercised their powers under the said section 530 or the said section 532, any expenses reasonably incurred by them under those sections in relation to that vessel which are not reimbursed out of the proceeds of sale (if any) within the meaning of those sections.

(3) Except in a case which is in the opinion of the Corporation a case of emergency, subsection (2) of this section shall not apply in relation to any vessel unless, before exercising in relation to that vessel any of the powers conferred on them by the said section 530 other than the power of lighting and buoying, the Corporation have given to the owner of the vessel not less than forty-eight hours' notice of their intention to do so; and if before the notice expires they receive from the owner counter-notice in writing that he desires to dispose of the vessel himself, and no direction is served in respect of the vessel under paragraph (b) of subsection (2) of the next following section, he shall be at liberty to do so, and the Corporation shall not exercise the powers aforesaid in relation to that vessel until the expiration of seven days from the receipt of the counter-notice and of any further continuous period thereafter during which the owner of the vessel proceeds with the disposal thereof with all reasonable diligence and in compliance with any directions for the prevention of interference with navigation which may be given to him by the Corporation.

(4) Notice under the last foregoing subsection to the owner of any vessel may be served by the Corporation either by delivering it to him or by sending it to him by post by the recorded delivery service addressed to him at his last known place of business or abode in the United Kingdom, or, if the owner or any such place of business or abode is not known to the Corporation or is not in the United Kingdom by displaying the notice (for the period of its duration) at the main entrance to the dock from Watery Lane in the borough.

(5) In this section, the expression “owner” in relation to any vessel means the person who was the owner of the vessel at the time of the sinking, stranding or abandoning thereof.

16.—(1) Without prejudice to section 741 of the Merchant Shipping Act, 1894, as modified by any Order in Council made under section 80 of the Merchant Shipping Act, 1906, the powers conferred on the Corporation by sections 530 and 532 of the said Act of 1894 shall not be exercisable—

of Crown
interests
in wrecks.

(a) in relation to any vessel sunk, stranded or abandoned by design by or under the orders of a person acting on behalf of Her Majesty or an officer or servant of the Crown acting in the course of his duty as such;

(b) except with the consent of the Secretary of State, which may be given with or without such a direction as is referred to in paragraph (b) of the next following subsection, in relation to any vessel which is not excluded from the exercise of those powers by virtue of being a vessel belonging to Her Majesty but which, at the time when the vessel was sunk, stranded or abandoned—

(i) had been required to be placed at the disposal of Her Majesty or of a government department; and

(ii) was appropriated to the service, under the direction and control of the Secretary of State, of Her Majesty's ships of war.

(2) The Corporation shall give notice in writing to the Secretary of State and to the Minister of any decision of the Corporation to exercise in relation to any vessel referred to in paragraph (b) of subsection (1) of this section any of the powers aforesaid other than the power of lighting and buoying and, except in a case which is, in the opinion of the Corporation, a case of emergency, shall not proceed with the exercise thereof—

(a) except with the consent of the Secretary of State and the Minister before the expiration of a period of fourteen days from the giving of the notice; or

PART II
—cont.

- (b) if before the expiration of the said period there is served on the Corporation a direction by the Secretary of State or the Minister that those powers shall not be exercised in relation to that vessel, except in such a case as aforesaid;

and where in any such case as aforesaid the Corporation proceed to exercise those powers without the consent and before the expiration of the period mentioned in paragraph (a) of this subsection or after a direction has been served on them as aforesaid, they shall not in the exercise of those powers, use any explosives and, if before the expiration of the period aforesaid such a direction as aforesaid is served on them, shall not be entitled to exercise the power of sale conferred by the said section 530 or the power conferred by subsection (2) of the last foregoing section:

Provided that—

- (i) the Corporation shall not be required to give notice under this subsection in respect of any vessel in respect of which they have received a consent under paragraph (b) of the foregoing subsection, but any direction such as is referred to in paragraph (b) of this subsection accompanying that consent shall be deemed for the purposes of this subsection and of subsection (3) of the last foregoing section to have been duly served under paragraph (b) of this subsection;
- (ii) the prohibition on the use of explosives imposed by this subsection shall not apply to the use for cutting away the superstructure of a vessel of such small explosive charges as may for the time being be approved by the Minister for the purposes of this proviso.

(3) Without prejudice to the power of sale conferred on the Corporation by the said section 530 the Corporation shall hold and dispose of any wreck within the meaning of Part IX of the said Act of 1894 raised, removed or recovered under that section, and any surplus proceeds of sale within the meaning of that section, in accordance with such directions, if any, as may be given to them by the receiver of wrecks; and on exercising the said power of sale in the case of any property the Corporation shall discharge any sums payable in respect of that property by way of duties of customs or excise, purchase tax, or surcharge in respect of sugar or molasses, and any sums so discharged shall be deemed to be expenses incurred by the Corporation under that section.

(4) Any limitation on the powers of the Corporation in relation to any vessel arising by virtue of subsection (1) or subsection (2) of this section shall not operate to authorise the exercise in relation to that vessel of the powers conferred on Trinity House by section 531 of the said Act of 1894.

PART II
—cont.

17.—(1) The Corporation may enter upon and from time to time dredge, scour, deepen, alter and improve the bed and fore-shore of the Ribble Navigation or any part or parts thereof and the bed of the sea in or near to any approach to the Ribble Navigation and blast any rock within the limits of the harbour and any rock in the sea in or near to any approach to the Ribble Navigation and any materials taken up or collected in the course of any such operations shall be the property of the Corporation and, subject to the provisions of this section, may be used, sold, removed, deposited or otherwise disposed of as the Corporation think fit.

Power to
dredge Ribble
Navigation.

(2) All such materials other than such materials (except sand) as the Corporation may require for the purposes of their works shall be carried by the Corporation out to sea and deposited westward of the meridian of three degrees nine minutes west of Greenwich:

Provided that nothing in this subsection shall be deemed or construed to prevent the Corporation from depositing such materials—

(a) on any land owned by the Lytham St. Annes Corporation with the consent in writing of the Lytham St. Annes Corporation; and

(b) above the level of mean high-water springs on—

(i) land owned or occupied by the Corporation; or

(ii) other land with the consent in writing of the owner and occupier thereof.

(3) Before commencing to deposit under subsection (2) of this section—

(a) any materials on land owned by the Lytham St. Annes Corporation below the level of mean high-water springs; or

(b) westward of the meridian three degrees nine minutes west of Greenwich any materials consisting of rock or other hard material obtained as a result of blasting operations;

the Corporation shall first obtain the consent of the Minister.

PART II
—cont.

(4) The Corporation shall not in the exercise of their powers under this section dredge, scour, deepen, alter or improve any part of the bed and foreshore of the Ribble Navigation owned by the Lytham St. Annes Corporation and not within the navigable channel without the consent of the Lytham St. Annes Corporation which consent shall not be unreasonably withheld, and any question whether the consent is or is not unreasonably withheld shall be determined by arbitration.

(5) If by reason or in consequence of the exercise of the powers of this section any damage is caused to any apparatus of the undertakers, the Corporation shall repay to the undertakers all costs, charges, damages and expenses occasioned to the undertakers by such damage or for which the undertakers may be liable.

(6) In this section—

“ the undertakers ” means the Central Electricity Generating Board and the North Western Electricity Board, or either of them; and

“ apparatus ” means electric lines or works (as respectively defined in the Electric Lighting Act, 1882), of the undertakers.

Fine for
putting stakes
in river
Ribble.

18. Every person who shall without the authority of the Corporation put any stakes into the bed of the harbour, or any of the banks of the river Ribble, for any purpose whatsoever so as in any manner to interfere with or be dangerous to navigation, shall for every such offence be liable to a fine not exceeding twenty pounds:

Provided that this section shall not apply to any works constructed below the level of mean high-water springs with the consent of the Minister given under any enactment.

Recovery of
rates in respect
of vessels.

19. In addition to the remedy given by section 44 of the Harbours Clauses Act 1847, as incorporated with this Act and whether the demand which may be made under that section has been made or not, the Corporation may recover any rates to which that section applies, as a debt in any court of competent jurisdiction.

Directions of
harbour
master.

20. Section 52 of the Harbours Clauses Act, 1847, in its application to the Corporation and the harbour master shall extend to empower the harbour master to give directions prohibiting the mooring of vessels in the dock or in any part of the harbour which lies within the navigable channel.

21. Section 52 of the Harbours Clauses Act, 1847, in its application to the Corporation and the harbour master shall not be construed to require the harbour master in emergency to give particular directions in the case of every vessel in respect of which it is desired to exercise any of the powers of that section but in pursuance of that section, for all or any of the purposes thereof, the harbour master shall be entitled in emergency to give general directions applicable to all vessels or to any particular class or classes of vessels.

PART II
—cont.

Harbour master may give general directions in emergency.

22. Section 53 of the Harbours Clauses Act, 1847, in its application to the Corporation and the harbour master shall not be construed to require the harbour master to serve a notice in writing of his directions upon the master of a vessel but such directions may be given verbally or otherwise communicated to such master, but a notice that is not in writing shall not be deemed to be sufficient unless in the opinion of the court before whom any case may be heard it was not reasonably practicable to serve a written notice on the master of the vessel.

Orders of harbour master need not be in writing.

23. The harbour master may prevent the removal or sailing from the dock of any vessel until evidence has been produced to him of the payment to the collector of any rates payable in respect of the vessel or of the goods imported or exported therein.

Harbour master may prevent sailing of vessels.

24.—(1) The Corporation may make byelaws as to the loading and discharging by vessels within the harbour of dangerous goods (which expression in this section and in section 25. (Notice before entry of dangerous goods) does not include dangerous goods to which byelaws made by the Corporation under the Explosives Act, 1875, or the Petroleum (Consolidation) Act, 1928, for the time being apply), and as to the bringing, handling, transport or storage of such goods within the dock estate and generally as to the precautions to be observed with respect to such goods while within the limits of the harbour or within the dock estate, and such byelaws may in particular provide—

Byelaws relating to certain dangerous goods.

- (a) for regulating the places at which vessels are to load or discharge dangerous goods and the time and mode of, and the precautions to be taken on, such loading and discharging; and
- (b) for regulating the places at which vessels carrying dangerous goods are to be moored; and
- (c) for the due enforcement of the byelaws.

(2) Where a person is charged with an offence against a byelaw in force under this section it shall be a defence for that person

PART II
—*cont.*

to prove that the offence was not caused or facilitated by any act or neglect on his part, or on the part of any person engaged or employed by him, and, if that person is charged as the owner or master of a vessel, that in addition, all reasonable means were taken by the master to prevent the commission of the offence.

(3) Byelaws made under subsection (1) of this section may contain provisions for the imposing on persons offending against any of the byelaws of fines not exceeding, on summary conviction, one hundred pounds, and, on conviction on indictment, one thousand pounds.

**Notice before
entry of
dangerous
goods.**

25.—(1) Except in case of emergency, the owner or master of a vessel carrying any dangerous goods shall, when that vessel enters the harbour, give notice to the harbour master of the nature and quantity of dangerous goods carried in the vessel and, if such notice is not given, the owner or master of the vessel shall be guilty of an offence and shall be liable to a fine not exceeding one hundred pounds.

(2) Where the owner or master of a vessel is charged with an offence under subsection (1) of this section, it shall be a defence to prove that he did not know and could not, with reasonable diligence, have ascertained the nature of the goods in respect of which the proceedings are taken.

**Power to give
directions as
to loading or
unloading.**

26.—(1) The Corporation may, by resolution, designate any quay or any portion of any quay for the loading and unloading of any goods to which this section applies.

(2) Where, pursuant to subsection (1) of this section, the Corporation have designated a quay or portion of a quay for the loading and unloading of goods of any description, the harbour master or the general manager of the Ribble Navigation undertaking may direct that goods of that description intended to be loaded on board, or unloaded from a vessel, shall not be deposited or received upon any quay other than the quay or portion of quay so designated and in the event of any person disobeying any such direction the Corporation may remove the goods to the quay or portion of quay so designated, and any expense incurred by them in so doing may be recovered by them from that person as a simple contract debt in any court of competent jurisdiction.

(3) The goods to which this section applies are goods in bulk and goods the nature or character of which is such as, in the opinion of the Corporation, to give rise to special risk of contamination, taint, stain, injury or danger to other goods or to

persons, or to necessitate the provision of special facilities for the handling thereof, or for the safety, protection, welfare or accommodation of persons employed in or in connection with such handling.

PART II
—cont.

(4) In this section “quay” has the same meaning as in section 5 (Interpretation) of the Act of 1883.

27.—(1) In this section—

Traffic
offences on
dock roads.

“dock road” means any road, pier, jetty, wharf, quay, bridge or other work which, or any land which, is for the time being vested in or the property of the Corporation in connection with the Ribble Navigation undertaking within the dock estate and is accessible to motor vehicles, not being a road to which the Road Traffic Act, 1960, applies;

“motor vehicle” has the same meaning as in the Road Traffic Act, 1960.

(2) The Road Traffic Act, 1960, shall have effect as if, in the provisions thereof hereinafter mentioned, the expressions “road” and “highway” included a dock road; and any person who commits an offence under any of those provisions, as extended by this section, shall be liable to be dealt with in all respects as if the offence had been committed under those provisions on a road as defined by section 257 of that Act, and all the provisions of that Act, so far as applicable (including, without prejudice to the generality of the foregoing, sections 25 and 250 thereof), shall apply accordingly.

(3) The provisions of the Road Traffic Act, 1960, referred to in subsection (2) of this section are—

- Section 1 (Causing death by reckless or dangerous driving);
- Section 2 (Reckless, and dangerous, driving generally);
- Section 3 (Careless, and inconsiderate driving);
- Section 4 (Speeding);
- Section 5 (Driving under age);
- Section 6 (Driving, or being in charge, when under influence of drink or drugs);
- Section 9 (Reckless and dangerous cycling);
- Section 10 (Careless and inconsiderate cycling);
- Section 11 (Cycling when under influence of drink or drugs);

PART II
—cont.

- Section 13 (Restriction on carriage of persons on bicycles);
- Section 14 (Drivers to comply with traffic directions);
- Section 15 (Pedestrians to comply with directions to stop given by constable regulating vehicular traffic);
- Section 16 (Leaving vehicles in dangerous positions);
- Section 24 (Speed limits for vehicles of different classes or descriptions);
- Section 51 (Traffic signs);
- Section 52 (Powers and duties of highway authorities as to placing of traffic signs);
- Section 54 (Emergency traffic signs);
- Section 77 (Duty to stop, and furnish particulars, in case of accident);
- Section 97 (Minimum age for driving);
- Section 98 (Drivers of motor vehicles to have driving licences);
- Section 110 (Offence of applying for or obtaining a licence, or driving, while disqualified);
- Section 201 (Users of motor vehicles to be insured or secured against third party risks);
- Section 202 (Exceptions from requirement of third party insurance or security);
- Section 218 (Penalisation of tampering with motor vehicles);
- Section 219 (Penalisation of holding or getting on to vehicles in order to be towed or carried);
- Section 223 (Power of police to stop vehicles);
- Section 225 (Power of police constables to require production of driving licences);
- Section 226 (Power of police constables to obtain names and addresses of drivers, and others);
- Section 228 (Penalisation of failure to give name and address, and power of arrest, in case of reckless or careless driving or cycling);
- Section 229 (Pedestrians to give names and addresses in certain cases);

Section 230 (Duty of driver, in case of accident involving injury to another, to produce evidence of insurance or security or to report accident);

Section 231 (Duty of owner of motor vehicle to give information for verifying compliance with requirement of compulsory insurance or security);

Section 241 (Restrictions on prosecutions for certain offences):

Provided that, if no duty is chargeable under the Vehicles (Excise) Act, 1962, in respect of a motor vehicle—

- (a) by virtue of the provisions of subsection (6) of section 6 of that Act; or
- (b) by reason only that the vehicle is used exclusively on roads which are not public roads within the meaning of that Act;

the said sections 97, 98, 201, 225, 230 and 231 shall not apply in respect of that vehicle while it is being driven, or to any person while driving it, on a dock road.

(4) Notwithstanding that no maximum speed limit or a maximum speed limit in excess of fifteen miles per hour has for the time being been fixed by or under section 24 of the Road Traffic Act, 1960, in relation to a motor vehicle of any class or description, that section, except subsection (2) thereof, shall for the purposes of this section have effect, so far as applicable, as if a maximum speed limit of fifteen miles per hour had been fixed thereby or thereunder in relation to a motor vehicle of that class or description when used on a dock road.

(5) Regulations or orders made under sections 64 and 70 of the Road Traffic Act, 1960, and from time to time in force, shall extend and apply to dock roads as they apply to roads as defined by section 257 of that Act, and subsection (2) of section 64 and section 239 of that Act shall apply accordingly:

Provided that, if no duty is chargeable under the Vehicles (Excise) Act, 1962, in respect of a motor vehicle—

- (a) by virtue of the provisions of subsection (6) of section 6 of that Act; or
- (b) by reason only that the vehicle is used exclusively on roads which are not public roads within the meaning of that Act;

the said regulations shall not apply in respect of that vehicle while it is being driven, or to any person while driving it, on a dock road.

PART II
—cont.

(6) For the purposes of the Road Traffic Act, 1960, as extended and applied by this section to any dock road, the expression “highway authority” shall mean the Corporation acting in their capacity as port and harbour authority.

Power to
provide
parking places
and to make
charges.

28. The Corporation may, on any land for the time being occupied by them in connection with the Ribble Navigation undertaking, provide and maintain parking places at which vehicles, or vehicles of any class or description, may be left, and may make reasonable charges in respect of any vehicle left at any such parking place or elsewhere on such land.

Application of
Act of 1933
to byelaws.

29.—(1) All byelaws relating to the Ribble Navigation undertaking made by the Corporation after the passing of this Act under any enactment shall be subject to the provisions contained in subsections (2), (3), (4), (5), (6) and (7) of section 250 and in sections 251 and 252 of the Act of 1933, and all fines imposed for the breach of any such byelaws shall be recoverable in manner provided by that Act for the recovery of fines.

(2) In the application of such last-mentioned provisions the Minister shall be the confirming authority.

(3) Section 250 of the Act of 1933 in its application to byelaws made under this section shall have effect as if in subsection (6) after the word “confirm” where it firstly occurs in the subsection the words “with or without modification” were inserted.

Fines
imposed by
byelaws.

30. Byelaws made by the Corporation under any enactment to which section 29 (Application of Act of 1933 to byelaws) of this Act applies may contain provisions imposing upon a person offending against a byelaw a fine not exceeding twenty pounds and a daily fine not exceeding five pounds.

Amendments
of sections 88
and 89 of Act
of 1883.

31. Section 88 (As to vessels remaining in dock beyond twenty-one days) and section 89 (As to loaded barges and loaded lighters remaining in dock beyond six days) of the Act of 1883 are hereby amended by the substitution of the words “one shilling” for the words “two pence” in each of those sections.

Amendment
of section 10
of Act of
1905.

32. Section 10 (Cross-sections of North Channel to be prepared by Corporation) of the Act of 1905 is hereby amended by the substitution of the words “in every period of three years prepare and shall on the first day of September 1967 and on the first day of September in every third year thereafter” for the words “annually prepare and shall on the first day of September one thousand nine hundred and five and on each succeeding first day of September”.

33. In the event of the passing during the present session of Parliament of a general Act relating to harbour charges which would, had such Act been passed after this Act, have had the effect of abolishing the limitations on the discretion of the Corporation as to the charges to be made by them under section 6 (Light dues) or section 7 (Rates on hover vehicles and hydrofoil vessels) or section 13 (Moorings, etc.) of this Act or under section 88 (As to vessels remaining in dock beyond twenty-one days) and section 89 (As to loaded barges and loaded lighters remaining in dock beyond six days) of the Act of 1883 as amended by section 31 (Amendments of sections 88 and 89 of Act of 1883) of this Act, the provisions of such general Act shall apply in relation to this Act as if it had been passed after this Act.

PART II
—cont.
Provision as to general Act relating to harbour charges.

PART III

LANDS

34. Notwithstanding anything in the Lands Clauses Consolidation Act, 1845, it shall be lawful for the High Court at any time, not being less than twelve years after any sum has been deposited by the Corporation in the bank in pursuance of section 76 of that Act or deposited by the Corporation in the bank by way of security in pursuance of section 85 of that Act, to order upon application by the Corporation that the money so deposited or the fund in which the sum shall have been invested together with the accumulations thereto shall be repaid or transferred to the Corporation:

Recovery of deposits under Lands Clauses Acts.

Provided that, upon the application of any party making claim to the money deposited as aforesaid or any part thereof or to the lands in respect of which the same shall have been deposited or any part of such lands or any interest in the same, the High Court may order such money as has been repaid or transferred to the Corporation under the provisions of this section, or any part thereof, to be paid to the person making such claim and may make such other order in the premises as the court shall think fit.

35.—(1) If the Corporation—

Suspension of restrictive covenants.

- (a) acquire land by agreement; or
- (b) enter into an agreement to acquire land; or
- (c) have acquired land by agreement before the passing of this Act;

for a purpose for which they are for the time being or could under any enactment for the time being in force be authorised to

PART III
—cont.

acquire the land compulsorily and the land is affected by any restriction arising under covenant or otherwise (other than a restriction imposed by any enactment) as to the user thereof or the building thereon the council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Corporation shall—

(a) in four successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected and specifying the time, not being less than three months from the first publication of the notice, within which and the manner in which objections to the suspension of the restriction can be made;

(b) serve by registered post or the recorded delivery service on every person who appears to them after diligent inquiry to be entitled to the benefit of the restriction to which the resolution relates a notice containing the like particulars to those specified in the foregoing paragraph of this subsection; and

(c) cause a notice containing the like particulars to those specified in paragraph (a) of this subsection to be posted in a prominent position on the land to which the resolution relates once at least in each of four successive weeks.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the restriction by sending notice of his objection and of the grounds thereof to the appropriate Minister within the period specified in the notice and by sending a copy thereof to the Corporation.

(5) If any objection is duly made as aforesaid and is not withdrawn the resolution shall be of no effect unless and until it is confirmed by the appropriate Minister and before confirming the resolution the appropriate Minister shall cause a public local inquiry to be held into the proposed suspension of the restriction and after considering the report of the person who held the inquiry may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section or if all objections so made are withdrawn the restriction

shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or, if more than one, the last objection or the date on which the Corporation acquire the land, whichever is the latest.

(b) If objection is duly made as aforesaid and the appropriate Minister confirms the resolution the restriction shall be suspended on and after such date as the appropriate Minister shall determine not being earlier than the date on which the Corporation acquire the land.

(7) The Corporation shall pay compensation in accordance with the provisions of section 68 of the Lands Clauses Consolidation Act, 1845, to any person entitled to the benefit of a restriction suspended under the powers of this section who suffers loss in consequence thereof and the amount of such compensation shall be determined in case of dispute in accordance with the Land Compensation Act, 1961.

(8) Any restriction suspended under the powers of this section shall be unenforceable so long as the Corporation are the owners of the land to which the restriction relates, or, if the Corporation convey the land to anybody for any of the purposes of the Education Acts, 1944 to 1959, so long as the land is used by that body for the purpose of those Acts and, if compensation is paid by the Corporation under subsection (7) of this section in respect of the suspension of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that if such compensation is paid on the basis that land may be used for a particular purpose, the restriction shall after any subsequent conveyance or disposition of the land to a person otherwise than for any of the purposes of the Education Acts, 1944 to 1959, remain unenforceable only so long as the land is used for that purpose.

(9) If the Corporation dispose of any land to which the restriction suspended under the powers of this section relates they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

(10) Nothing in this section shall apply to any restriction for the protection of or for securing access to apparatus of any statutory undertakers contained in any deed, wayleave, agreement or other instrument.

PART III
—cont.

(11) In this section the expression “ the appropriate Minister ” means the Minister of the Crown having power to authorise the compulsory purchase of the land for the purpose for which the Corporation have acquired or agreed to acquire that land.

PART IV

STREETS

Mixing of
mortar, etc.,
in streets.

36.—(1) No person shall mix or deposit mortar, cement, plaster or any like substance in any street in the borough maintainable at the public expense or in any street therein constructed under the powers in that behalf contained in the Housing Act, 1957, the Highways Act, 1959, or the Town and Country Planning Act, 1962, or an enactment repealed by any of those Acts, or in any part of a private street being a part that drains into a gully, drain or sewer for the maintenance of which the Corporation are responsible, except upon such board or in such receptacle as will protect the street from such mortar, cement, plaster or substance and will prevent it from being washed into any gully, drain or sewer:

Provided that this section shall not apply to the mixing or depositing in any street of any substance for the purposes of making up, maintaining, reinstating, repairing, altering or improving such street or any bridge over or under the same.

(2) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding five pounds.

Awnings over
footways.

37.—(1) If a person erects, or permits to be erected, over the footway of a street in the borough, being a highway maintainable at the public expense, an awning which—

- (a) projects over any part of the footway which is less than two feet from the carriageway; or
- (b) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding five pounds.

An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is dangerous or inconvenient to the public, the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to remove the danger or inconvenience.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

PART IV
—cont.

(4) In this section “awning” includes a blind, shade or other covering.

38.—(1) Where the Corporation are satisfied—

Temporary
prohibition
or restriction
of traffic
during
execution of
works.

(a) that traffic on any street in the borough for the maintenance of which they are responsible should, by reason of any works being executed or proposed to be executed on or near the street, be restricted or prohibited; and

(b) that it is desirable that such prohibition or restriction should come into force without delay and that for this reason it is not expedient to effect such restriction or prohibition by means of an order made under subsection (1) of section 36 of the Road Traffic Act, 1960;

they may by notice restrict or prohibit for any period not exceeding twenty-four hours the use of that street or any part thereof by vehicles, or by vehicles of any particular class or description, to such extent and subject to such conditions and exceptions as they may consider necessary:

Provided that the powers conferred on the Corporation by this section shall not be exercised—

- (i) with respect to any street or any part thereof on more than one occasion in any period of fourteen consecutive days; or
- (ii) with respect to any street upon which public service vehicles are authorised by a road service licence to operate unless the Corporation give not less than forty-eight hours' previous notice to the traffic commissioners and to the operators of the public service vehicles so licensed.

(2) The provisions of subsections (3), (4), (5), (8), (9) and (10) of section 36 of the said Act of 1960 shall extend and apply for the purposes of this section as if any notice issued by the Corporation under subsection (1) of this section had been issued under subsection (2) of that section.

(3) Notwithstanding the imposition of any restriction or prohibition on the use of any street under the powers of this section, any statutory undertakers shall be at liberty at all times to execute and do all such works and things in, upon or under

PART IV
—*cont.*

such street as may be necessary for inspecting, repairing, maintaining, renewing or removing any apparatus of those undertakers which at the time of the imposition of such restriction or prohibition is in that street.

PART V

PUBLIC SAFETY

Provision of
means of
escape from
fire in certain
buildings.

39.—(1) Paragraph (b) of subsection (4) of section 60 of the Act of 1936, as amended by section 26 (Further provisions as to means of escape from fire in case of certain buildings) of the Act of 1952, in its application to the borough shall have effect as if—

- (a) the words “ boarding school ” were omitted; and
- (b) the words “ old persons’ home ” and “ school ” were respectively inserted after the words “ children’s home ” and “ shop ”:

Provided that the said section 60, as so amended, in its application to the borough shall not apply to any building exempted from the provisions of Part II of the Act of 1936 with respect to building byelaws or building regulations by paragraph (a) of section 71 of that Act.

(2) (a) The Corporation may by notice require the person having control of a building to which the said section 60, as amended by the said section 26 and by subsection (1) of this section, applies (other than a house let in flats) to keep unobstructed such passages and gangways as are specified in the notice and, if he fails to do so, he shall be liable to a fine not exceeding twenty pounds.

(b) A person served with a notice under this subsection may appeal to a magistrates’ court on any of the following grounds:—

- (i) that the requirement of the notice is not justified by the terms of this subsection;
- (ii) that there has been some informality, defect or error in, or in connection with, the notice;
- (iii) that the requirement of the notice is unreasonable in character or extent or is unnecessary.

Means of
ingress to and
egress from
certain
buildings.

40.—(1) Section 59 of the Act of 1936 in its application to the borough shall have effect as if—

- (a) in paragraph (b) of subsection (5) of that section for the word “ twenty ” there was substituted the word “ ten ”;

(b) in paragraph (d) of the said subsection (5) the words “and any premises used for giving instruction in dancing” were added at the end of that paragraph; and

PART V
—cont.

(c) there were added at the end of the said subsection (5) the following proviso:—

“Provided also that this section shall not apply to such premises as are referred to in paragraph (b) of this subsection if only the ground floor of the building is used for the purposes of the restaurant, shop, store, or warehouse (as the case may be).”

(2) The provisions of the said section 59 in its application to the Corporation shall be construed so as to enable the Corporation to require that such first-aid fire appliances as the Corporation deem necessary shall be installed in premises to which the said section applies other than premises in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

Provided that any notice served by the Corporation under subsection (2) of the said section 59 requiring the installation of first-aid fire appliances may be served on the owner or the occupier of the building.

41.—(1) Where plans for the erection of a building are in accordance with building byelaws or building regulations deposited with the Corporation, the Corporation shall reject the plans if they show—

Building plans:
access for
fire brigade.

(a) that the building will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be effectively fought; or

(b) that the building will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be effectively fought.

(2) Where plans for the extension of a building are in accordance with building byelaws or building regulations deposited with the Corporation, the Corporation shall reject the plans if they show—

(a) that the extension will be such as to affect the adequacy of the means of access by the fire brigade to the building and that the building as extended will not be provided with such means of access by the fire brigade as are necessary to enable a fire in the building to be effectively fought; or

PART V
—cont.

- (b) that the extension will interfere with the means of access by the fire brigade to a neighbouring building to such an extent as to render those means insufficient to enable a fire in the neighbouring building to be effectively fought.

(3) In this section “access by the fire brigade” means access by members of one or more fire brigades and their appliances and references to a neighbouring building are, in relation to a neighbouring building for the erection, alteration or extension of which plans have been passed, references to the neighbouring building as erected, altered or extended in accordance with those plans.

(4) If the Corporation reject the plans under the authority of this section, the notice given in pursuance of subsection (2) of section 64 of the Act of 1936, shall specify that the plans have been so rejected.

(5) Any question arising under this section between the Corporation and the person by whom, or on whose behalf, plans are deposited as to whether the Corporation ought to pass the plans may, on the application of that person, be determined by a magistrates’ court.

Further
precautions
against fire
in certain
high or large
buildings.

42.—(1) Within the borough unless the Corporation consent—

- (a) no building shall be erected with a storey or part of a storey at a greater height than—

(i) one hundred feet; or

(ii) eighty feet if the area of the building exceeds ten thousand square feet;

- (b) no building or part of a building of a cubical extent exceeding two hundred and fifty thousand cubic feet shall be used for purposes of trade or manufacture unless it is divided by division walls in such manner that no division of the building or part of the building (as the case may be) is of a cubical extent exceeding two hundred and fifty thousand cubic feet:

Provided that—

- (i) the Corporation shall not withhold consent under paragraph (a) or paragraph (b) of this subsection if they are satisfied that having regard to the proposed use to which the building is to be put proper arrangements will be made and maintained for preventing or reducing danger from fire in the building;

- (ii) paragraph (b) of this subsection shall not apply to a building erected before the passing of this Act unless and until after the passing of this Act a structural alteration or extension is made in or to the building or a material change (as defined in subsection (2) of section 62 of the Act of 1936) takes place in the purposes for which the building is used.

(2) In giving their consent under this section the Corporation may attach thereto conditions restricting the user of the building or part of the building or relating to the provision and maintenance of proper arrangements for preventing or reducing danger from fire in the building or part of the building.

(3) Any person who is aggrieved by a decision of the Corporation under this section—

- (i) to withhold consent; or
- (ii) to attach conditions to a consent;

may within twenty-one days from the receipt of notification of the decision appeal to a magistrates' court.

(4) If any person contravenes the provisions of subsection (1) of this section or any condition attached to a consent given under this section he shall be liable to a fine not exceeding fifty pounds and if—

- (a) that person after conviction of the contravention; or
- (b) any other person after notice of the conviction has been served on him by the Corporation;

uses the building without the consent of the Corporation or in contravention of any condition attached to a consent given under this section he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(5) (a) The measurement of the height of any such storey or part of a storey as is mentioned in this section shall be taken at the centre of that face of the building where the measurement is greatest from the level of the footway immediately in front of that face or where there is no such footway from the level of the ground before excavation to the level of the highest part of the interior of the storey.

(b) In this section the expression "cubical extent" in relation to the measurement of a building means the space contained within the external surfaces of its walls and roof and the upper surface of the floor of its lowest storey but excluding any space

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—cont.

within any enclosure on the roof of the building used exclusively for accommodating a water tank or accommodating lift gear or other such apparatus:

Provided that where a building on one or more of its sides is not enclosed by a wall or walls the building where unenclosed shall be deemed to be enclosed by walls within the external surface thereof in a vertical plane extending downwards from the outer edge of the roof.

(6) Nothing in this section shall apply to any building exempted from the provisions of Part II of the Act of 1936 with respect to building byelaws or building regulations by paragraph (a) or paragraph (c) of section 71 of that Act.

Parts of
buildings used
for storage
of inflammable
substances.

43.—(1) The occupier of any part of a building to which this section applies which after the appointed day is used or intended to be used for the storage for the purposes of sale or trade of any substances to which this section applies (in this section referred to as “the storage part of the building”) shall give notice to the Corporation of such use or intention to use, as the case may be, and such notice shall be given—

- (a) in the case of any part of a building which is so used immediately before the appointed day, within twenty-one days after the appointed day; and
- (b) in the case of any part of a building which after the appointed day is intended to be so used, not less than twenty-one days before such user takes place.

(2) The Corporation may, if they are of the opinion that such storage—

- (a) is in such quantity as to be likely to prove a source of danger to any person inhabiting or using any part of the building as a habitable room or as a place where any person works; or
- (b) is in such manner as to be liable to cause fire or explosion;

by counter-notice require the occupier of any part of a building in respect of which a notice has been served under subsection (1) of this section to provide within such reasonable period as may be specified in the counter-notice—

- (i) adequate means for extinguishing fire and safeguards to prevent the spread of fire to or from the storage part of the building;
- (ii) means of ready escape in case of fire from the storage part of the building and any other part of the building being a part comprising a habitable room or a place

in which any person works if that other part communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;

- (iii) notices in or on the storage part of the building indicating the existence of danger from fire.

(3) (a) An authorised officer of the council may, in respect of any premises which he has entered in pursuance of the powers conferred by section 287 of the Act of 1936 as applied by this Act, purchase and test samples of any substance stored on such premises for the purposes of sale or trade in order to ascertain whether or not such substance is a substance to which this section applies.

(b) The result of any kind of test of a sample taken by an authorised officer of the council by virtue of this section shall not be admissible as evidence in any legal proceedings under this section, including an appeal under subsection (6) of this section, unless the following requirements have been complied with: that is to say, the said officer shall, forthwith after taking the sample, notify the occupier of the building of his intention to have it tested and shall there and then divide the sample into three parts, shall cause each part to be placed in a suitable container which shall be sealed up and marked, and shall—

- (i) deliver one part to the occupier of the building;
- (ii) retain one part for future comparison; and
- (iii) if he thinks fit to have a test made, submit one part to be tested.

(4) The occupier of any building who—

- (a) by reason of a restriction affecting his interest in the building is unable to execute works for the purpose of complying with a requirement of the Corporation under this section; or
- (b) considers that the owner of the building or any other person having an interest therein should contribute towards the cost of the execution of works as aforesaid and is unable to agree with the owner or such other person as to whether such a contribution should be made or as to the amount thereof;

may apply to the county court for an order to enable the execution of such works as may be necessary for the purpose of complying with such requirement or, as the case may be, to direct the owner of the building or any other person who appears to the court to have an interest therein to contribute towards the cost of such works as aforesaid such an amount as appears to the court in all the circumstances of the case to be fair and reasonable and the court may on such application make an order in respect of either or both of the matters aforesaid accordingly.

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(5) (a) If after the requirements of the Corporation under subsection (2) of this section have been complied with and a certificate to that effect has been granted by the Corporation any material extension or material structural alteration of the building to which the certificate relates is made the Corporation may serve a further counter-notice varying any requirement made under subsection (2) of this section in respect of that building.

(b) Upon compliance being made with such varied requirements the Corporation shall amend the certificate or grant a new certificate in respect of the building but if anything required to be provided in accordance with a further counter-notice served under this subsection is not provided within such reasonable time as may be specified in the further counter-notice the Corporation may cancel the certificate granted under this subsection in respect of the building.

(6) (a) Any person aggrieved by a requirement of the Corporation under subsection (2) of this section, or by a variation of a requirement under subsection (5) of this section, may appeal to a magistrates' court on any or all of the following grounds:—

- (i) that the requirement or variation is not justified by the terms of this section;
- (ii) that the requirement or variation is unreasonable in character or extent;
- (iii) that the period specified in the counter-notice is not reasonably sufficient for the purpose of complying with the requirements of the counter-notice.

(b) Any person aggrieved by the refusal of the Corporation to grant or amend a certificate under this section or by the cancellation of a certificate under subsection (5) of this section may appeal to a magistrates' court.

(7) If any person contravenes the provisions of this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(8) This section applies to—

- (a) any building in the borough which is used, or intended to be used, partly for the storage for the purposes of sale or trade of any substance to which this section applies and partly as a habitable room or a place in which any person works, if the part used as a habitable room or a place in which a person works communicates directly or indirectly with or is adjacent to or constructed at a higher level than the storage part of the building;
- (b) (i) any substance which is gaseous at a temperature of thirty-three degrees Fahrenheit at atmospheric pressure and which is inflammable; and

- (ii) any other substance which when tested by a method approved by the Secretary of State gives off an inflammable vapour at a temperature of less than one hundred and fifty degrees Fahrenheit:

Provided that this section shall not apply to any building in which no substance to which this section applies is stored other than—

- (i) one or more of the substances to which sections 1 and 2 of the Petroleum (Consolidation) Act, 1928, apply; or
- (ii) any substance which does not when tested by a method approved by the Secretary of State give off an inflammable vapour at a temperature of less than eighty degrees Fahrenheit and which is stored in securely closed metal containers in good condition and containing not more than five gallons each; or
- (iii) any substance which does not when tested by a method approved by the Secretary of State give off an inflammable vapour at a temperature of less than eighty degrees Fahrenheit and which is stored in separate glass or glazed earthenware vessels securely stoppered and the aggregate amount of all such substances stored in such manner would not, if the whole contents were in bulk, exceed twenty-five gallons.

(9) In this section “building” where used in relation to the storage of substances therein includes the curtilage of the building.

(10) Nothing in this section shall apply to premises which are subject to the Factories Act, 1961, or regulations made under that Act.

(11) Nothing in this section shall apply to any building or part of a building by reason only that part of that building is used, or intended to be used, to contain a pressure governor, meter, booster or other apparatus for or in connection with the supply of gas.

44.—(1) As from the appointed day any person intending to instal or place oil-burning equipment in any building in the borough whether erected before or after the passing of this Act or on any land in the borough shall give not less than fourteen days’ notice to the Corporation of his intention so to do.

(2) (a) The Corporation may make byelaws for securing that in relation to any oil-burning equipment so installed or placed after the coming into operation of the byelaws proper arrangements will be made for preventing or reducing danger from fire.

(b) Byelaws made under this section may include provisions—

- (i) prescribing in connection with the installation or placing of oil-burning equipment in any such building or on

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—cont.

any such land as aforesaid the works, apparatus and fittings and fire-fighting appliances to be provided and the mode of arrangement of any such works, apparatus, fittings and appliances; and

- (ii) empowering the Corporation if they are satisfied that proper arrangements will be made for preventing or reducing danger from fire to approve the installation or placing of any equipment notwithstanding that it does not comply with the appropriate specification for such equipment contained in the byelaws.

(3) (a) Any person aggrieved by the refusal of the Corporation to approve the installation or placing of any equipment under any byelaw made under sub-paragraph (ii) of paragraph (b) of subsection (2) of this section may within twenty-one days from the receipt of notification of the refusal appeal to the Secretary of State.

(b) Where an appeal is brought under this subsection the Secretary of State may dismiss or allow the appeal or may vary the decision of the Corporation against which the appeal is made.

(c) The decision of the Secretary of State on any such appeal shall have effect as if it were a decision of the Corporation given under the byelaw.

(4) (a) If any person installs oil-burning equipment in any building or on any land in the borough without giving notice to the Corporation in accordance with subsection (1) of this section he shall be liable to a fine not exceeding fifty pounds.

(b) If any person contravenes any byelaw made under subsection (2) of this section he shall be liable to a fine not exceeding fifty pounds and if—

- (i) that person after conviction of the contravention; or
- (ii) any other person after notice of the conviction has been served on him by the Corporation;

uses the oil-burning equipment in contravention of that byelaw he shall be liable to a fine not exceeding ten pounds for each day on which he so uses it.

(5) (a) In this section—

the expression “oil-burning equipment” means a boiler designed or adapted for the combustion of oil and includes the burner, the storage tanks and the apparatus, fittings, devices and catch-pits and any other equipment used for or in connection with the heating of the boiler;

the expression “boiler” means a boiler, furnace, heater, oven or similar plant;

the expression “ storage tank ” means a tank, container or device designed or adapted for the purpose of supplying oil to a boiler;

the expression “ apparatus and fittings ” includes pipes and pipe fittings, taps, valves, pumps, gauges, vessels, fans and filters.

(b) References in this section to the installation or placing of oil-burning equipment in any building or on any land shall be construed as including the installation or placing of oil-burning equipment which is partly in a building and partly on land outside the building.

(6) Nothing in this section or any byelaws made thereunder shall apply to—

(a) any oil-burning equipment if the storage tank or tanks supplying or designed or adapted to supply oil to the boiler has or have a total capacity not exceeding seven hundred and fifty gallons; or

(b) any oil-burning equipment installed in any building in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force; or

(c) the installation of any oil-burning equipment by the Central Electricity Generating Board or the North Western Electricity Board for the purposes of their respective undertakings:

Provided that the exemption conferred by this paragraph shall not extend—

(i) to houses; or

(ii) to buildings used as offices or showrooms; or

(d) the installation of any oil-burning equipment by the North Western Gas Board for the purposes of their undertaking:

Provided that the exemption conferred by this paragraph shall not extend—

(i) to houses; or

(ii) to buildings used as offices or showrooms; or

(e) the installation of any oil-burning equipment by the British Railways Board for the purposes of their undertaking:

Provided that the exemption conferred by this paragraph shall not extend—

(i) to houses; or

(ii) to buildings used as offices or showrooms other than buildings so used which form part of a railway station.

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—cont.

(7) Section 250 of the Act of 1933 in its application to byelaws made under this section shall have effect as if in subsection (6) after the word “confirm” where it firstly occurs in the subsection the words “with or without modification” were inserted.

(8) The provisions of any byelaw made under this section shall cease to apply in relation to any premises to which the Factories Act, 1961, applies on the coming into force in relation to those premises of regulations made under that Act and relating to the same subject-matter as this section.

Underground
parking places.

45.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building byelaws or building regulations include proposals for the construction, alteration or extension of an underground parking place, or the alteration of a building for use as an underground parking place, the Corporation may, notwithstanding anything in section 64 of the Act of 1936, reject the plans unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire being proposals relating to all or any of the following matters:—

- (a) the construction of the underground parking place and the approaches thereto and the materials to be used in such construction;
- (b) the provision of adequate means of ventilation of the underground parking place;
- (c) the provision of electrical and mechanical and heating equipment in the underground parking place;
- (d) the provision of fire-fighting equipment and appliances in connection with the underground parking place;
- (e) the provision of safe and adequate means of ingress to and egress from the underground parking place;
- (f) the provision of adequate means of access to the underground parking place for fire brigade appliances and personnel.

(2) Subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

- (a) whether the work is such as is mentioned in subsection (1) of this section; or
- (b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may, on the application of that person, be referred to the Secretary of State for determination, and the Secretary of State shall determine any question submitted to him under paragraph (a) of this subsection or, as the case may be, may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

PART V
—cont.

(4) If, after plans of any underground parking place have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section, it appears to the Corporation that any such proposal has not been carried into effect or is not being observed, the Corporation may by notice to the owner or occupier of the underground parking place prohibit its use as an underground parking place until the proposal has been carried into effect or is being observed.

(5) If any person on whom a notice has been served under subsection (4) of this section uses the underground parking place or permits it to be used as an underground parking place without giving effect to or securing the observance of any proposal specified in the notice, he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

46.—(1) Without prejudice to the provisions of section 45 (Underground parking places) of this Act, the Corporation may by notice to the owner or occupier of any underground parking place in the borough which is first brought into use after the passing of this Act require compliance with such conditions as to the use of the underground parking place as may be specified in the notice for the purpose of preventing or reducing danger from fire therein, and in the case of any underground parking place as aforesaid in respect of which plans are not deposited with the Corporation in pursuance of building byelaws or building regulations the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (f) of subsection (1) of the said section 45 as the Corporation think fit.

Further provision as to underground parking places.

(2) If any person on whom a notice under this section has been served fails to comply with any requirement specified in the notice, he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding five pounds.

(3) A person on whom a notice under this section has been served may within twenty-one days of the service of the notice appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person the Corporation shall deliver to him a certificate signed by the town clerk stating the grounds on which the Corporation have made any requirement

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—*cont.*

under this section, and where such person appeals to the Secretary of State against such requirement the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given, or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may, if he thinks fit, confirm, modify, alter or annul any requirement made by the Corporation under this section.

Interpretation
and powers
of entry for
purposes of
last two
foregoing
sections.

47.—(1) In the last two foregoing sections the expression “underground parking place” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by a local authority or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act, 1928, is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space, either alone or in addition to any other facility or service, for motor cars or other vehicles and of which any part of the floor is situated more than four feet below the surface of the ground adjoining or nearest to such building or part of a building.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.

Firemen's
switches for
luminous
tube signs.

48.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding six hundred and fifty volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the appointed day apparatus in the borough to which this section applies shall be provided with a cut-off switch on the low-voltage side of the transformer; and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the Corporation may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to instal apparatus to which this section applies, the consumer shall give notice to the Corporation showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the appointed day, the consumer shall, not less than fourteen days before the appointed day, give notice to the Corporation—

- (a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked;
- (b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Corporation as required by subsection (3) or subsection (4) of this section the proposed, or, as the case may be, actual, position, colouring or marking of the switch shall be deemed to satisfy the requirements of the Corporation unless, within ten days from the date of the service of the notice, the Corporation have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the Corporation.

(7) A person aggrieved by a counter-notice served by the Corporation under subsection (5) of this section may appeal to a magistrates' court; and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding five pounds and, in the case of an offence under subsection (8) of this section, to a daily fine not exceeding two pounds.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations, 1937, or any regulations that may be made under section 60 of the Electricity Act, 1947.

(12) This section shall not apply to apparatus installed on or in premises or any part of premises in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

PART V
—cont.

Provided that where any luminous tube sign to which, but for this subsection, subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or occupier thereof shall before such apparatus is fitted give notice to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

PART VI

CULTURAL ACTIVITIES

Acquisition
of works
of art
produced
to order.

49. The Corporation may enter into and carry into effect agreements or arrangements for the production to their order of any picture or sculpture or other work of art and for the purchase thereof by the Corporation when completed.

Disposal of
unsuitable
specimens
and works
of art.

50.—(1) The Corporation may sell, lend, exchange or give or otherwise dispose of any specimen, work of art or book vested in them which in the opinion of the Corporation is not required for exhibition or use in any museum, art gallery, library or other building of the Corporation.

(2) The Corporation may make arrangements by way of sale, loan, exchange or gift with any person being the owner of any museum, art gallery or library for the transfer to that person of any specimen, work of art or book vested in the Corporation which in the opinion of the Corporation is more suitable for exhibition or use in the museum, art gallery or library of that person than in a museum, art gallery, library or other building of the Corporation.

(3) Where any object has become vested in the Corporation by virtue of a gift or bequest—

(a) the Corporation shall, if reasonably practicable, consult with the donor or with the personal representatives or trustees of the donor before exercising the powers of this section; and

(b) the powers conferred by this section shall not, during a period of thirty-five years commencing on the date on which it became vested, be exercisable as respects that object in any manner inconsistent with any condition attached to the gift or bequest except with the consent of the donor or the personal representatives or trustees of the donor.

(4) Any moneys received by the Corporation in the exercise of the powers of this section shall be applied by them in the purchase of specimens, works of art or books.

51.—(1) The powers of the Corporation under the Public Libraries Acts, 1892 to 1919, shall extend so as to enable them to provide and lend or permit the use of gramophone records and other recordings of sound, pictures, films, film strips, lantern slides, prints, engravings and photographs.

PART VI
—cont.

Further
powers as to
libraries.

(2) Notwithstanding anything in the said Acts of 1892 to 1919, the powers of the Corporation under those Acts in relation to any library provided by them thereunder shall include—

- (a) the power to charge such reasonable sum as the Corporation may prescribe for the reservation of an article;
- (b) the power to prescribe a period not being less than seven days within which any article borrowed from such library must be returned thereto;
- (c) the power to recover from any person who fails within such prescribed period to return to such library any article so borrowed, such reasonable sum as the Corporation may prescribe in respect of each week or portion of a week in which he so fails to return such article, together with any expenses incurred by the Corporation in sending to such person notices in respect of such article;
- (d) the power to prohibit any such person from borrowing any other article from any library provided by the Corporation under those Acts until such person has paid any such sum as is due to the Corporation under paragraph (c) of this subsection;
- (e) the power to require a deposit to be made by any person intending to borrow any article other than a book;
- (f) the power to prescribe different periods and charges for the purposes of this section in relation to different articles or kinds of articles:

Provided that the sum—

- (i) prescribed by the Corporation for the purposes of paragraph (c) of this subsection in respect of any book;
or
- (ii) required to be deposited by the Corporation under paragraph (e) of this subsection;

shall not exceed in the case referred to in the foregoing paragraph (i) sixpence, or in the case referred to in the foregoing paragraph (ii) two pounds, or in either case such greater sum as may from time to time be approved by the Minister of Education.

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—*cont.*

(3) In subsection (2) of this section the expression “ article ” includes a book, gramophone record or other recording of sound, picture, music, manuscript, newspaper, film, film strip, lantern slide, map, plan, print, engraving or photograph.

PART VII

FINANCE, SUPERANNUATION, ETC.

Power to
borrow.

52.—(1) The Corporation may borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;
- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

and, subject to the provisions of this section Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Scheme for
equated
periods.

53.—(1) The Corporation may make a scheme for prescribing one or more uniform periods within which all or any loans contracted by them under statutory borrowing powers shall be discharged and such scheme may extend or vary the periods within which such loans shall be discharged and may apply to any such loans all or any of the provisions of this Act and the Act of 1933 in regard to the borrowing and repayment of money, with or without modification, and may make provision in regard to all matters incidental to the objects aforesaid.

(2) Any scheme made by the Corporation under this section shall have no force or effect until confirmed by the Minister of Housing and Local Government, who may confirm the same with or without modifications, and when so confirmed the scheme shall, notwithstanding any enactment, order or sanction to the contrary, have full force and effect.

(3) Nothing in any scheme made under this section shall prejudice or affect the security, rights and remedies of any mortgagee under any mortgage existing at the time of the confirmation of the scheme or of the holder of any stock or bonds existing at that time except with the consent of such mortgagee or holder.

(4) The loans referred to collectively in any scheme under general headings in accordance with a classification approved by the said Minister may be consolidated and dealt with in the accounts of the Corporation as if the aggregate amount of the several loans relative to each heading were one loan raised under one statutory borrowing power and if approved by the said Minister separate consolidations may be made of all or any of the loans included under such general headings.

(5) Any scheme confirmed under this section may be altered, extended, amended or annulled by any other scheme prepared and confirmed in like manner as the original scheme.

54.—(1) (a) The Corporation may (if they think fit) provide Reserve funds. a reserve fund in respect of any undertaking, department or service of the Corporation from which revenue is derived by setting aside such an amount as they may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in any securities in which trustees are from time to time authorised to invest trust funds until the fund so provided amounts to the maximum for the time being prescribed by the Corporation.

(b) Any income arising from the investment of the moneys in the reserve fund in manner provided by this subsection shall be carried to and form part of the general rate fund and an amount equivalent to such income shall be credited to the reserve fund.

(2) The reserve fund provided under this section may in respect of the undertaking, department or service to which it relates be applied—

- (a) in making good any deficiency at any time happening in the income of the Corporation from the undertaking, department or service; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking, department or service; or
- (c) in or towards the payment of the cost of renewing, improving or extending any works, buildings, machinery, plant or conveniences forming part of the undertaking, department or service or otherwise for the benefit thereof;

and so that if the fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund provided under this section although such fund may not at the time have reached or may have been reduced below the prescribed maximum.

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—cont.

(4) If and when the Corporation establish a reserve fund under this section in respect of any such undertaking, department or service as aforesaid any moneys standing to the credit of any reserve fund or contingency or depreciation fund provided by the Corporation in respect of that undertaking, department or service and in existence at the date of the passing of this Act shall be carried to and form part of the reserve fund provided under this section in respect of that undertaking, department or service.

(5) As from the establishment of a reserve fund under this section in respect of any such undertaking, department or service as aforesaid paragraph (c) to section 17 (Application of revenue of undertakings) and section 18 (Provision as to reserve funds etc.) of the Preston Corporation Act, 1933, shall cease to have effect in relation to that undertaking, department or service.

Guild
Merchant
fund.

55.—(1) The Corporation may if they think fit establish a fund to be called “the Guild Merchant fund” to which they may apply from the general rate fund, in addition to any income arising from the investment or use of the fund, any sum not exceeding in any year the equivalent of a rate of a penny in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act, 1925:

Provided that payments into the Guild Merchant fund shall cease to be made whenever the said fund amounts to the sum of fifty thousand pounds.

(2) (a) Pending the application of moneys forming part of the Guild Merchant fund to the purposes authorised by subsection (3) of this section such moneys shall, unless applied in any other manner authorised by any enactment, be invested in any securities in which trustees are from time to time authorised by law to invest trust funds.

(b) Any income arising from the investment or use of the moneys in the Guild Merchant fund in manner provided by this subsection shall be carried to and form part of the general rate fund and subject to the limitation imposed by the proviso to subsection (1) of this section as to the maximum amount standing to the credit of the fund, an amount equivalent to such income shall be credited to the Guild Merchant fund.

(3) The Guild Merchant fund shall be applicable towards the costs incurred by the Corporation in financing the celebration of the Preston Guild Merchant and so that if at any time the fund be reduced it may thereafter be again restored to the maximum sum provided for in the proviso to subsection (1) of this section and so from time to time as often as such reduction happens.

(4) Resort may be had to the Guild Merchant fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the maximum sum provided for in the proviso to subsection (1) of this section.

PART VII
—cont.

56.—(1) The Corporation may establish a fund to be called Art fund. “the art fund” to provide for the purchase of any pictures, sculptures or other objects of artistic, scientific or historical interest which in their opinion it is desirable at any time to acquire for exhibition in and as additions to the collection of the Corporation, and that fund shall be formed by appropriating thereto out of the general rate fund such amounts as the Corporation may from time to time determine not exceeding in any financial year the equivalent of one-fifth of the product of a rate of a penny in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act, 1925:

Provided that when the art fund amounts to the sum of ten thousand pounds the Corporation shall discontinue appropriations, but whenever the art fund is reduced below that sum the Corporation may recommence and continue appropriations until the art fund is restored to that sum.

(2) (a) Pending the application of the art fund to the purposes authorised in the foregoing subsection the moneys in the said fund shall, unless applied in any other manner authorised by any enactment, be invested in any securities in which trustees are from time to time authorised by law to invest trust funds.

(b) Any income arising from the investment of the moneys in the art fund in the manner provided by this subsection shall be carried to and form part of the general rate fund and, subject to the limitation imposed by the proviso to subsection (1) of this section as to the maximum amount standing to the credit of the fund, an amount equivalent to such income shall be credited to the art fund.

57.—(1) The Corporation may establish a fund to be called Insurance fund. “the insurance fund” with a view to providing a sum of money which shall be available for making good such losses, damages, costs and expenses as may from time to time arise in respect of such risks as may from time to time be specified in a resolution of the council (in this section referred to as “the specified risks”).

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.

(3) When the insurance fund shall amount to the prescribed amount, as hereinafter defined, the Corporation shall discontinue

PART VII
—cont.

the appropriations to the fund under subsection (4) of this section but, if the fund is at any time reduced below the prescribed amount, the Corporation shall recommence and continue such appropriations, until the fund be restored to the prescribed amount, and if at any time the Corporation reduce the prescribed amount so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the general rate fund and, if any sums shall have been appropriated from the housing revenue account under the next succeeding subsection, to the housing revenue account in such proportions as the Corporation consider equitable and any moneys so transferred to the general rate fund shall be apportioned between the several accounts of that fund in such proportions as the Corporation consider equitable.

(4) The Corporation may from time to time appropriate to the insurance fund such sums as they think fit from the appropriate account in the general rate fund, and, if they think fit, from the housing revenue account, and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Corporation which, if the specified risks were insured against in an insurance office, would be properly chargeable with the payment of the premium of such insurance:

Provided that any payments by contribution from the housing revenue account shall not exceed the proportion of the total yearly payments which in the opinion of the Corporation properly relates to the specified risks arising from the purposes for which that account is kept.

(5) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks, or any of them, all moneys for the time being standing to the credit of the insurance fund shall, unless applied in any other manner authorised by any enactment, be invested in any securities in which trustees are from time to time authorised to invest trust funds, and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to and form part of the general rate fund.

(b) The Corporation shall in every financial year carry to the credit of the insurance fund out of the revenue moneys of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the preceding paragraph of this subsection.

(6) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Corporation in respect of the specified risks which are payable out of the insurance

fund, in the order of the dates on which such losses, damages, costs or expenses become ascertained, and, if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses, the Corporation may, with the sanction of the Minister of Housing and Local Government, borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

PART VII
—*cont.*

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding paragraph of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings, departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(7) If and when the Corporation establish an insurance fund under this section any moneys standing to the credit of any insurance fund provided by the Corporation and in existence at the date of the passing of this Act shall be carried to and form part of the insurance fund provided under this section.

(8) In this section—

“ insurance office ” means—

- (i) an insurance company; or
- (ii) an underwriter being a member of an association of underwriters;

“ the prescribed amount ” means such sum as may from time to time be prescribed by the council.

58.—(1) In subsection (2) of section 67 (Power to use one form of mortgage for all purposes) of the Act of 1921 for the words “ sealed with the corporate seal of the Corporation ” the words “ signed by the town clerk or his duly authorised deputy ” shall be substituted and after the words “ to the like effect ” the words “ Provided that for the purposes of this subsection a mortgage shall be deemed to be signed by the town clerk or his duly authorised deputy if a facsimile of such signature is printed thereon ” shall be inserted.

(2) Schedule 2 to this Act shall be substituted for the Second Schedule to the Act of 1921 and the said section 67 shall have effect as if Schedule 2 to this Act were referred to therein instead of the Second Schedule to the Act of 1921.

PART VII
—cont.

Amendment
of section 129
of Act of 1947.

59. Section 129 (Capital fund) of the Act of 1947 shall have effect as if—

- (a) in proviso (b) to subsection (1) the words “or such greater sum as may be allowed by the Minister” were inserted after the word “pounds”;
- (b) in subsection (2) for the words “the sum of ten thousand pounds” there were inserted the words “a sum equivalent to a rate of fivepence in the pound calculated according to the rules made pursuant to sections 9 and 58 of the Rating and Valuation Act, 1925”.

Certain
remuneration
and service
excluded for
super-
annuation
purposes.

60.—(1) The salary, wages, fees and other payments paid or made to an employee of the Corporation or of any other local authority in respect of any part-time employment by the Corporation (additional to his ordinary whole-time employment)—

- (a) as an instructor or other employee performing duties at or for the purposes of an evening institute or for evening classes; or
- (b) as a warden of or other employee performing duties at a youth centre; or
- (c) as a civil defence instructor; or
- (d) in any other capacity for the performance of duties which are not duties which he may be called upon to perform in his ordinary whole-time employment where that employment is by the Corporation;

shall not be remuneration within the meaning of the Local Government Superannuation Acts, 1937 to 1953, or of any other enactment affecting the superannuation fund maintained by the Corporation under those Acts and the service of any such employee in any such part-time employment shall not be reckoned as service for any of the purposes of those Acts.

(2) Where before the passing of this Act any person has paid any contribution or contributions to the superannuation fund maintained by the Corporation which would not have been so paid if this section had been in force when such contribution or contributions were paid, the Corporation shall repay to such person a sum equal to the amount of such contribution or contributions together with compound interest thereon calculated to the date of repayment at the rate of three pounds per centum per annum with half-yearly rests.

Transfer of
certain sums
from super-
annuation
fund.

61.—(1) If a contributory employee of the Corporation is dismissed or resigns or otherwise ceases to hold employment in consequence of an offence of a fraudulent character or grave misconduct the Corporation may transfer from the superannuation

fund maintained by them to the general rate fund an amount not exceeding the whole or any part of any contributions not returned to him or paid to his wife or family under subsection (4) of section 10 of the Local Government Superannuation Act, 1937, or the amount of loss suffered by the Corporation in consequence of the contributory employee's offence or misconduct, whichever is the less.

PART VII
—cont.

(2) In this section the expression "contributory employee" has the same meaning as in the Local Government Superannuation Act, 1937.

62.—(1) The Corporation may pay to any of their officers who act in any of the following capacities:—

Officers of
Corporation
acting as
receivers, etc.

- (a) as the receiver appointed by an order made under Part VIII of the Mental Health Act, 1959;
- (b) as the administrator of the estate of a deceased person acting by virtue of a grant made to him as the nominee of the Corporation;
- (c) as a surety to a bond required by law from an officer acting in accordance with paragraph (a) of this subsection;

the amount of any sum forfeited by him to the Crown or the Principal Probate Registrar or the amount of any payment which he is liable to make by reason of his acting in the course of his duties as an officer of the Corporation in any such capacity as aforesaid.

(2) The Corporation may pay the amount of any premiums upon an insurance policy indemnifying an officer acting in any of the capacities mentioned in subsection (1) of this section against any act, neglect or default whether his own or that of any other person occurring in the course of the receivership or administration.

63. For the purposes of section 15 of the Rating and Valuation Recovery of Act, 1925, the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within one month after lawful demand in writing has been made for the same.

rates from
tenants and
lodgers.

PART VIII

MISCELLANEOUS

64. As from the 1st January, 1965, Parts I, II and III of Schedule 3 to this Act shall be respectively substituted for Parts II, III and V of the Third Schedule to the Act of 1947

Increase of
market and
fair tolls, etc.

PART VIII
—*cont.*

and section 109 (Tolls in Corporation markets and slaughter-houses etc.) of the Act of 1947 shall have effect as if Parts I, II and III of Schedule 3 to this Act were respectively referred to therein instead of Parts II, III and V of the Third Schedule to the Act of 1947; and the Acts relating to the markets of the Corporation shall be read and construed accordingly.

Power to let
stalls, etc.

65. The Corporation may from time to time let to any person or grant to any person a licence to occupy any shop, stall, standing or other convenience in any market or fair for any time, or on a periodic basis greater than from week to week, at such rent and on such terms as they think reasonable.

Further
powers under
section 24 of
Preston and
District
Water Board
Order, 1959.

66. Where under the provisions of section 24 (Demand and collection of water charges by constituent councils) of the Preston and District Water Board Order, 1959, any of the constituent councils referred to in that order are required by the Preston and District Water Board to demand and collect any rates and charges such constituent council may recover on behalf of the board such rates and charges and any such rates and charges shall be recoverable by such constituent council in the same manner and subject to the same provisions in respect of such recovery as the general rate.

Disposal of
lost and
uncollected
property.

67.—(1) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Corporation may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(2) If any lost or uncollected property within three months of coming into the custody of the Corporation be not proved to the reasonable satisfaction of the Corporation to belong to any claimant, it shall thereupon vest in the Corporation:

Provided that any lost or uncollected property which is of a perishable nature and any lost property the custody of which involves unreasonable expense or inconvenience may, notwithstanding that it has not vested in the Corporation under this section, be disposed of at such time and in such manner as the Corporation may think fit, and, if it is sold, the proceeds of sale shall vest in the Corporation at the expiration of three months from the date on which the property came into their custody.

(3) Where any lost property becomes vested in the Corporation in pursuance of this section, the Corporation may, if they think fit, deliver to the person, whether an employee of the Corporation or not, who placed the lost property in the custody of the Corporation, the whole or any part of such property or of the estimated value thereof in cash.

(4) This section shall, in the case of uncollected property placed in the custody of the Corporation on express terms inconsistent with the rights of the Corporation under this section, have effect subject to those terms.

PART VIII
—cont.

(5) In this section—

the expression “lost property” means any property, including money, coming into the custody of the Corporation after being left on or in any premises occupied by the Corporation to which the public have access; and

the expression “uncollected property” means any property deposited in any cloakroom or parcels store provided by the Corporation for the use of the public or any containers deposited in any market store-room provided by the Corporation in which there is exhibited a notice containing a statement to the effect of subsections (1) and (2) of this section.

68. The rent for the time being recoverable by the Corporation under a tenancy of any premises forming part of any housing accommodation belonging to the Corporation may be increased or reduced or the terms and conditions of that tenancy may be varied, amended or added to by the service by the Corporation on the tenant of a notice—

Notice of
variation of
rent, etc.

- (a) specifying the amount of the increase or reduction in rent or the variation or amendment of or addition to the terms and conditions; or
- (b) in the case of an increase or reduction in rent, showing in general terms how the increase or reduction in rent has been determined and indicating that the revised rent has been or will be included in the rent book provided by the Corporation;

whether or not such notice is accompanied by a notice to quit, but such increase, reduction, variation, amendment or addition shall not take effect until such date as may be specified in the notice not being earlier than four weeks after the service thereof:

Provided that if before the date specified in the notice the tenant upon whom such notice has been served serves a counter-notice upon the Corporation requiring them to treat the notice as a notice to quit, the notice shall be deemed to be a notice to quit the premises on the said date or, in the case of an increase or reduction in rent notified by means of a general notice as aforesaid and an entry in the rent book, such later date (not being more than four weeks from the date on which the revised rent is so entered) as the tenant may indicate in the counter-notice.

PART VIII
—cont.

False
statements
to obtain
rent rebates,
etc.

69.—(1) If a person for the purposes of obtaining for himself or another person—

- (a) the tenancy or occupation of a house belonging to, or at the disposal of, the Corporation; or
- (b) a grant, loan, allowance or other payment by or on behalf of the Corporation, or
- (c) a reduction of a rent, rate, charge or other payment due or to become due to the Corporation;

knowingly or recklessly makes, or permits to be made, to the Corporation or to any committee of the council or member of the council or employee of the Corporation a statement which is false in a material particular about his, or that other person's, needs or means, he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both.

(2) Where the making of a false statement for any of the purposes aforesaid is an offence under any enactment other than the Perjury Act, 1911, it shall not be an offence under this section.

(3) The court by which a person is convicted of an offence under this section may by the conviction adjudge him—

- (a) to repay to the Corporation a sum not exceeding the amount of the grant, allowance or other payment not being a loan obtained by means of the false statement;
- (b) to pay to the Corporation a sum not exceeding the difference between any reduced payment accepted by the Corporation in faith of the false statement and the payment which the Corporation would otherwise have accepted.

Hawking, etc.,
of any article
or commodity.

70.—(1) As from the appointed day no person shall at any place in the borough to which this section applies without the consent of the Corporation, which may be given on such terms and conditions as they think fit, hawk, sell or offer for sale any article or commodity.

(2) The Corporation shall not withhold their consent under the foregoing subsection to the sale or offering for sale by any person of newspapers and periodicals except on the ground that their consent to such sale or offering for sale has already been given to a reasonably sufficient number of other persons.

(3) The prohibition imposed by subsection (1) of this section shall not apply to a sale or offering for sale to persons residing in, or employed at, premises in or adjoining a place to which this section applies.

(4) This section applies to any place in any street or part of a street to which this section applies by virtue of byelaws made by the Corporation under this section.

(5) Any person aggrieved by the refusal of the Corporation to give their consent under subsection (1) of this section, or by any terms or conditions attached to a consent given by the Corporation thereunder may appeal to a magistrates' court.

(6) If any person contravenes any of the foregoing provisions of this section or any term or condition upon which any consent is given thereunder he shall be liable to a fine not exceeding ten pounds.

71.—(1) The Corporation may by notice require the owner or occupier of any premises or place in the borough at which any exhibition, performance, amusement, game or sport to which the public are or will be admitted is held, given or provided or is about to be held, given or provided to provide to the reasonable satisfaction of the Corporation and thereafter to the like satisfaction to maintain during the continuance of such exhibition, performance, amusement, game or sport in a suitable position such numbers of sanitary conveniences for the use of the public resorting to such premises or place as may be reasonable.

Provision of
sanitary
conveniences
at places of
exhibition, etc.

(2) Any person aggrieved by a requirement made under subsection (1) of this section may appeal to a magistrates' court.

(3) If any person fails to comply with a notice served on him under this section within such reasonable period not being less than one month after the date of the service of the notice as may be specified therein and the public are thereafter admitted to the premises or place for any such exhibition, performance, amusement, game or sport he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings:

Provided that—

- (a) in any proceedings under this subsection it shall be open to the defendant to question the reasonableness of the Corporation's requirements or of their decision to address their notice to him and not to the occupier or (as the case may be) the owner of the premises; and
- (b) no proceedings shall be taken against a person who has failed to comply with a notice served on him under this section if on the date when the public are admitted to the premises or place in respect of which the notice was served he has ceased to be the owner or occupier thereof.

PART VIII
—cont.

(4) Section 89 of the Act of 1936 shall in its application to the borough have effect as if—

(a) for the words “refreshment-house or place of public entertainment” in subsection (1) of that section there were substituted the words “or refreshment-house”; and

(b) the proviso to subsection (2) of that section were omitted and the following subsection were inserted after the said subsection (2)—

“(3) The provisions of Part XII of this Act with respect to appeals against and the enforcement of notices requiring the execution of works shall apply in relation to any notice given under this section.”

(5) Nothing in this section shall apply to premises to which the said section 89 applies by reason only of the holding thereon of any exhibition, performance, amusement, game or sport to which the public are admitted or to any pleasure fair within the meaning of section 75 of the Public Health Act, 1961, in respect of which byelaws under the said section 75 are for the time being in force.

Removal of
vehicles.

72.—(1) If a vehicle is left in the borough elsewhere than on a road or in an off-street parking-place provided under section 81 of the Road Traffic Act, 1960, the Corporation may, with the consent of the occupier of the land on which the vehicle is left and after giving not less than seven days' notice to the owner of the vehicle, cause it to be removed:

Provided that, where the vehicle appears to the Corporation to be abandoned—

(a) the Corporation may cause it to be removed without the consent of the occupier of the land if they are unable after reasonable inquiry to ascertain his name and address; and

(b) the Corporation may cause the vehicle to be removed without notice to the owner thereof if they are unable after reasonable inquiry to ascertain his name and address.

(2) The provisions of any regulations for the time being in force under section 43 of the Road Traffic Act, 1960 (which relates to the removal of vehicles from roads) about the method of removing vehicles and their loads and arrangements for the safe custody of vehicles and their loads shall apply to vehicles removed under this section.

(3) Section 15 of the Road Traffic and Roads Improvement Act, 1960 (which relates to charges for the removal and storage of

vehicles) and any order for the time being in force under that section shall apply to a vehicle removed under this section as if it had been removed from a road in pursuance of regulations under section 43 of the Road Traffic Act, 1960.

PART VIII
—cont.

(4) For the purpose of the said section 15 and any such order as applied by the last preceding subsection “the appropriate authority” means the Corporation and any reference in regulations made under section 43 of the Road Traffic Act, 1960, to a charge to payment of which the Corporation are entitled under the said section 15 shall be construed accordingly.

(5) If it appears to the Corporation that a vehicle removed under this section has been abandoned the Corporation may sell or otherwise dispose of it subject to compliance with such regulations as are for the time being in force under section 43 of the Road Traffic Act, 1960, relating to the disposal of vehicles abandoned on roads; and the provisions of any regulations under that section relating to the proceeds of the sale of vehicles abandoned on roads and to the recoupment of costs incurred in connection with the disposal of such vehicles shall, with the necessary modifications, apply to the sale and disposal of vehicles under this subsection.

(6) In this section “owner” in relation to a vehicle which is the subject of a hiring agreement or hire-purchase agreement means the person in possession of the vehicle under that agreement and “road” means a highway or other road to which the public has access and includes bridges over which the road passes.

73.—(1) The powers of the Corporation in relation to a burial ground shall include power—

Extension
of power to
maintain
burial grounds.

- (a) to put and keep in order any memorial therein;
- (b) to level any grave therein;
- (c) to remove the whole or any part of any memorial therein;
- (d) to alter the position of any such memorial.

(2) Before exercising a power conferred by paragraphs (b), (c) or (d) of the foregoing subsection the Corporation shall—

- (a) publish a notice of their intention to do so once in each of two successive weeks in some newspaper circulating in the borough, with an interval between the dates of publication of not less than six clear days;
- (b) display a notice thereof in a conspicuous position in the burial ground; and

PART VIII
—cont.

- (c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

(3) Each of the notices shall in relation to the grave to which it refers—

- (a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;
- (b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service, whichever is the latest; and
- (c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister of Housing and Local Government, unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate, or destroy, any memorial removed under this section, unless the memorial is claimed and removed by the person claiming it or some person acting on his behalf, within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a memorial is removed by the Corporation under this section, the Corporation may erect at their own expense, in substitution, a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each memorial removed or otherwise disposed of by them in pursuance of their powers under this section containing—

- (a) a copy of any inscription on it; and

(b) if it is intended to preserve the memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar General.

(8) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court:

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any memorial for whose removal such a faculty or licence was obtained.

(9) In this section—

“burial ground” includes any churchyard, cemetery or other ground, whether consecrated or not, which has been at any time set apart for the purpose of interment and is for the time being maintained by the Corporation;

“grave” means a place of burial and includes a vault, niche or urn;

“memorial” includes a monument, gravestone, tablet, tombstone, headstone, kerbstone, railings, vase and any other ornament placed or erected over or around any grave or in or on any chapel or other building vested in the Corporation in a burial ground.

74. Notwithstanding anything in section 42 of the Cemeteries Grant of
Clauses Act, 1847, and the schedule to that Act, or in any other exclusive
enactment, a form of grant of the exclusive right of burial in any rights of
part of a burial ground or cemetery maintainable by the Corpora- burial under
tion may be given under the hand of the town clerk or his duly hand.
authorised deputy in lieu of under the common seal of the
Corporation:

Provided that for the purposes of this section a grant of exclusive right of burial shall be deemed to be given under the hand of the town clerk or his duly authorised deputy if a facsimile of his signature by whatever process reproduced is affixed to such grant.

75. At any time after the Corporation have provided any Electronic
electronic or mechanical accounting equipment for the purposes or mechanical
of all or any of their accounting work they may by agreement accounting
with any other person use, or permit that other person to use, the equipment.
said equipment for the purposes of that other person and they
may make such charges as may be agreed for the use of the said
equipment.

PART IX

PROTECTIVE PROVISIONS

Crown rights.

76. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Corporation to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose:

Provided that nothing in this section shall prejudice or affect the exercise by the Corporation of the powers conferred by section 9 (Maintenance of training walls, etc.), section 12 (Power to erect and place lights, buoys, etc.), section 13 (Moorings, etc.) or section 17 (Power to dredge Ribble Navigation) of this Act and the consent of the said commissioners shall not be required to the exercise of such powers.

Saving rights
for Duchy of
Lancaster.

77. In particular, and without prejudice to the general law concerning the applicability of statutes to the Duchy of Lancaster, nothing in this Act contained shall extend or operate to authorise the Corporation to take, use, enter upon or in any manner interfere with any land, soil, water or any manorial rights or any other rights of whatsoever description belonging to Her Majesty in right of Her Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said Duchy first had and obtained (which consent may be given either unconditionally or subject to such conditions and upon such terms as the said Chancellor shall deem necessary or appropriate) or take away, prejudice or diminish any estate, right, privilege, power or authority vested in or enjoyed or exercisable by Her Majesty, Her Heirs and Successors in right of Her said Duchy:

Provided that notwithstanding anything in this section the consent of the said Chancellor shall not be required to the exercise by the Corporation of the powers conferred by section 9 (Maintenance of training walls, etc.), section 12 (Power to erect and place lights, buoys, etc.), section 13 (Moorings, etc.) or section 17 (Power to dredge Ribble Navigation) of this Act.

Saving for
Southport and
Lytham
fishery
harbours.

78. Nothing in this Act shall prejudice or affect the operation of the Sea Fish Industry Act, 1951, in relation to the fishery harbours at Southport and Lytham.

79. For the protection of the Lytham St. Annes Corporation the following provisions shall, notwithstanding anything in this Act and unless in any case it is otherwise agreed between the Corporation and the Lytham St. Annes Corporation, apply and have effect:—

PART IX
—cont.
For pro-
tection of
Lytham
St. Annes
Corporation.

(1) In this section unless the context otherwise requires—

“ authorised work ” means so much of any work carried out under the powers of section 9 (Maintenance of training walls, etc.) or section 14 (Power to make subsidiary works) of this Act as affects any of the protected property;

“ plans ” includes sections and, when reasonably required by the Lytham St. Annes Corporation, working drawings;

“ protected property ” means any pipes, works or apparatus now constructed or provided by the Lytham St. Annes Corporation in the harbour:

(2) (a) Except in an emergency, before commencing to construct any authorised work the Corporation shall submit to the Lytham St. Annes Corporation plans thereof for their reasonable approval;

(b) If the Lytham St. Annes Corporation do not within twenty-eight days after the submission to them of any such plans signify to the Corporation in writing their approval or disapproval thereof they shall be deemed to have approved thereof;

(c) No authorised work shall be constructed otherwise than in accordance with such plans as may have been approved (or deemed to have been approved) by the Lytham St. Annes Corporation or if such approval be withheld as may be settled by the Minister and any such work shall be executed to the reasonable satisfaction of the Lytham St. Annes Corporation:

Provided that if there be any inconsistency between any plans approved or deemed to have been approved by the Lytham St. Annes Corporation under this paragraph and the plans approved by the Minister under section 14 of this Act the authorised works to which the plans relate shall be constructed in accordance with the plans approved by the Minister:

(3) The Corporation shall at all times keep the Lytham St. Annes Corporation indemnified against all damages, losses, costs and expenses which they may sustain or be liable for or reasonably and properly incur by reason or in consequence of any injury or damage which may be

PART IX
—cont.

caused or may result to any protected property or as a result of any interference in the operation thereof by or as a direct consequence of the construction of an authorised work or the exercise of any powers conferred by this Act:

Provided that the Lytham St. Annes Corporation shall give to the Corporation notice of any claim or demand made against them which in the opinion of the Lytham St. Annes Corporation is a claim or demand for which the Corporation may be liable under this paragraph and no settlement or compromise of any such claim or demand shall be made without the consent in writing of the Corporation:

- (4) Except as otherwise expressly provided by this section any difference which may arise between the Corporation and the Lytham St. Annes Corporation under this section (other than a difference as to the meaning or construction of this section) shall be referred to arbitration.

For protection of
British
Waterways
Board.

80. Subsections (1) and (3) of section 87 (For protection of Leeds and Liverpool Canal Company) of the Act of 1883 shall extend and apply for the protection of the British Waterways Board as if they were re-enacted in this Act.

For protection of
Commonwealth War
Graves
Commission.

81.—(1) In this section—

“the Commission” means the Commonwealth War Graves Commission;

“Commonwealth war burial” means a burial of any officer or man of the naval, military or air forces of His Majesty fallen in the war of 1914 to 1921 or in the war of 1939 to 1947.

(2) In relation to any burial ground to which the provisions of section 73 (Extension of power to maintain burial grounds) of this Act apply and in which there are situated any Commonwealth war graves relating to the war of 1914 to 1921 or to the war of 1939 to 1947, the Corporation shall—

- (a) not later than the date upon which such notice is first published in a newspaper circulating in the borough, serve upon the Commission a copy of any notice which the Corporation are required to publish pursuant to the said section 73;
- (b) give written notification to the Commission of their intention to apply for a faculty or licence of a consistory court for the purposes of exercising a power conferred by paragraph (b), (c) or (d) of subsection (1) of the said section 73;

and in any such case shall have due regard to any written representations made by the Commission within a period of one month from the service of the notice or the giving of the notification, as the case may be.

PART IX
—cont.

(3) The Corporation shall not, in pursuance of the powers of the said section 73, remove any memorial placed or erected over or around any Commonwealth war grave unless they have first given to the Commission satisfactory assurances in writing in regard to all or such of the following matters as the Commission consider appropriate, namely:—

- (a) that no other memorial shall be placed or erected over or around such grave;
- (b) that any Commonwealth war burial in such grave shall at all times be protected from interference or disturbance otherwise than interference or disturbance authorised by a licence granted by the Secretary of State or authorised by a faculty of a consistory court after prior notification to the Commission of the application for the licence or faculty;
- (c) that in the case of any memorial placed or erected by the Commission over any such grave such memorial shall be removed only in accordance with such arrangements and in such manner, including disposal of the memorial, as shall be agreed in writing between the Corporation and the Commission.

(4) If a Commonwealth war burial would be affected by a consent given by the Minister of Housing and Local Government under subsection (4) of the said section 73, the Corporation shall, not later than the date on which the matter is referred to that Minister, inform the Commission in writing of such reference and that Minister shall consider any representations submitted to him by the Commission within a period of twenty-eight days from the date of reference to that Minister.

82. Notwithstanding anything in this Act, the following provisions for the protection of the Lancashire River Board, and the same board acting as the drainage board for the Hesketh Estate (Flood Defences) Commissioners Area and as the drainage board for the Longton Marsh Internal Drainage District, and of the South Fylde Drainage Board and the River Crossens Drainage Board (any one of which is in this section referred to as “a drainage authority”) shall apply and have effect:—

For protection of land drainage authorities.

In the exercise of the powers conferred on the Corporation by section 14 (Power to make subsidiary works) or section 17

PART IX
—cont.

(Power to dredge Ribble Navigation) of this Act the Corporation shall not execute any work, deposit any material or do any thing which would—

- (a) interfere with the free flow of waters (other than tidal waters) in any watercourse (within the meaning of the Land Drainage Act, 1930) which discharges either directly or indirectly into the river Ribble or the river Douglas and which is for the time being under the jurisdiction of a drainage authority; or
- (b) otherwise adversely affect the drainage of any lands which either adjoin or the drainage of which is directed to either of those rivers.

PART X

GENERAL

Confirming
authority for
byelaws.

83. In the case of byelaws made under the provisions of section 44 (Oil-fired boilers) and section 70 (Hawking, etc., of any article or commodity) of this Act, the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Secretary of State.

Local
inquiries.

84.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act, as well as the Ministers therein mentioned.

Restriction
on right to
prosecute.

85. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation.

Appeals.

86.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates’ court under this Act; and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of

the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

PART X
—cont.

then, until the time for appealing has expired or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

87.—(1) (a) In this Act the expression “the appointed day” means, in reference to the sections of this Act hereinafter mentioned, such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(b) The sections of this Act hereinbefore referred to are—

- Section 43 (Parts of buildings used for storage of inflammable substances);
- Section 44 (Oil-fired boilers);
- Section 48 (Firemen’s switches for luminous tube signs);
- Section 70 (Hawking, etc., of any article or commodity).

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

- (a) of the passing of any such resolution and of the day fixed thereby; and
- (b) of the general effect of the provisions of this Act coming into operation as from that day;

and the day so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

PART X
—*cont.*

Application
of general
provisions
of Act of
1936.

88.—(1) The sections of the Act of 1936 mentioned in Part I of Schedule 4 to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to the following Parts of this Act, that is to say:—

Part IV (Streets);

Part V (Public safety).

(3) The section of the Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included references to the said Part V of this Act, and also to section 72 (Removal of vehicles) of this Act.

(4) The section of the Act of 1936 mentioned in Part IV of the said schedule shall have effect as if references therein to that Act included a reference to section 37 (Awnings over footways) of this Act.

Protection
of members
and officers
of Corporation
from personal
liability.

89. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority.

Arbitration.

90. Where under this Act any question or dispute is to be referred to or determined by an arbitrator or arbitration then, unless other provision is made, the reference shall be to a single arbitrator to be agreed upon between the parties, or failing agreement appointed by the President of the Institution of Civil Engineers on the application of any party to the dispute (after notice in writing to the others of them).

Repeals.

91. The enactments specified in column (1) of Part II of Schedule 1 to this Act are hereby repealed to the extent shown in column (2) of the said Part.

Saving for
town and
country
planning.

92. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

Costs of Act.

93. The costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate or out of money to be borrowed under this Act for that purpose.

SCHEDULES

SCHEDULE 1

Section 4.

PART I

ENACTMENTS RELATING TO INCORPORATION OF THE HARBOURS CLAUSES
ACT, 1847, REPEALED

Enactment (1)	Extent of repeal (2)
Ribble Navigation and Preston Dock Act, 1883	The words "The Harbours Docks and Piers Clauses Act 1847" where they first occur in section 4 (Incorporation of Acts) and the proviso to the said section.
Ribble Navigation &c. Act, 1888	The words from and including "And such byelaws except" to and including the words "the Board of Trade" in section 114 (Power for Corporation to make byelaws as to Dock quays &c.). The words "The Harbours Docks and Piers Clauses Act 1847" where they first occur in section 4 (Incorporation of Acts) and the proviso to the said section.

PART II

Section 91.

REPEALS

Act (1)	Extent of repeal (2)
Ribble Navigation Act, 1853 ... Ribble Navigation and Preston Docks Act, 1883	The whole Act. In section 5 (Interpretation) the definitions of the expressions "vessel" and "the undertaking". Section 7 (Port and Harbour of Preston). Section 59 (Area within which material may be deposited). In section 70 (Power to retain sell &c. lands), the words from and including "The provisions of sections 99 to 150" to the end of the section. Paragraphs (1) to (10) of section 71 (As to reclamation of lands in North Meols). Section 72 (As to certain reclaimed lands in the Manor of Lytham). In section 76 (Power to lease warehouses, &c.), the words "not exceeding in any case seven years". Section 115 (As to Dock Master). Section 183 (As to future accretions). Subsections (ii) and (iii) of section 184 (Saving rights of the Duchy of Lancaster).

SCH. 1
—cont.

Act (1)	Extent of repeal (2)
Ribble Navigation &c. Act, 1888	In section 5 (Interpretation) the definitions of the expressions "The dock", "The new dock", "The dock undertaking" and "Vessels". In section 13 (New channel and dock substituted for channel and dock authorised by the Act of 1883) the words "the Ribble Navigation Act, 1853, and".
Ribble Navigation Act, 1890 ...	Subsection (2) of section 53 (Saving rights of the Duchy of Lancaster). Section 54 (As to future accretions).
Ribble Navigation Act, 1896 ...	Section 10 (As to deposit of dredged material). Section 15 (As to future accretions). Section 29 (Power to charge for use of moorings). Section 30 (Power to provide lightships). In section 34 (Power to make additional by-laws), the words from and including "For fixing the tolls" to and including the words "for the payment thereof".
Ribble Navigation Act, 1905 ...	Section 35 (Power to exchange plant). In section 7 (Incorporation of certain sections of the Act of 1896) the words "Section 15 (As to future accretions);". Section 8 (As to deposit of dredged material).
Preston Corporation Act, 1914	In section 8 (Incorporation of certain sections of Act of 1896) the words "Section 15 (As to future accretions);". In section 12 (Purchase of lands by agreement for Ribble Navigation Undertaking), the words "not exceeding one hundred acres". Section 104 (Houses infested with vermin to be cleansed).
Preston Corporation Act, 1921	Section 33 (Increase of light dues).
Preston Corporation Act, 1931	In section 4 (Interpretation) the definition of the expression "The Ribble Navigation undertaking". In section 9 (Incorporation of certain sections of Acts of 1896 and 1929) the words "Section 15 (As to future accretions)". Section 74 (Scheme for fixing equated periods).
Preston Corporation Act, 1947	In section 4 (Interpretation) the definitions of the expressions "The Ribble Navigation" and "the port and harbour of Preston" and "The Ribble Navigation undertaking".

Act (1)	Extent of repeal (2)
Preston Corporation Act, 1947 (<i>cont.</i>)	Section 8 (Removal of sunk stranded or abandoned vessels). Section 40 (Fencing of forecourts). Section 47 (As to urgent repairs of private streets). Subsection (2) of section 65 (Food storage accommodation). Section 67 (Window blinds, &c.). Section 73 (Erection of buildings to greater height than adjoining building). Section 81 (Recovery of cost of maintaining sewers). Section 82 (Abandoned drains to be filled up). Section 83 (As to defective drains &c.). Section 84 (Further power to examine and test drains &c. believed to be defective). Section 85 (Cleansing of sinks and gullies). Section 90 (Information to be furnished in case of notifiable disease). Section 91 (Compensation to persons for ceasing employment to prevent spread of disease). Section 104 (Cleansing of filthy or verminous premises). Section 105 (Power to require persons to vacate premises during fumigation). In subsection (2) of section 137 (Provision of lectures and exhibitions) the words "for or in connection with the advancement of art education drama science music or literature". Section 138 (Extension of section 2 (3) of the Public Health (Interments) Act 1879). Section 139 (Charges for and letting of parks &c. for games).
Preston Corporation Act, 1952 ...	Section 7 (Attachment of street lamps brackets &c.). Section 10 (Pavement lights and ventilators). Section 15 (Mixing of mortar &c. in streets). Section 16 (Separate sewers for foul water and surface water). Section 17 (Power to repair drains and private sewers). Section 18 (Penalty for improper construction or repair of water closet &c.). Section 19 (Closet accommodation for separate dwellings).

SCH. 1
—*cont.*

SCH. 1
—cont.

Act (1)	Extent of repeal (2)
Preston Corporation Act, 1952 (cont.)	Section 21 (Ruinous and dilapidated buildings and neglected sites). Section 23 (Cellars and rooms below subsoil water level). Section 24 (As to defective premises). Section 25 (Provision of bathrooms). Section 27 (Prohibition of sale of verminous articles). Section 37 (Boating pools). Section 40 (Extension of power to maintain burial grounds). Section 80 (Insurance fund). Section 93 (False statements to obtain rent rebate reductions in payments under the Education Acts &c.). Section 97 (Derelict petrol tanks).

Section 58.

SCHEDULE 2

FORM OF MORTGAGE

COUNTY BOROUGH OF PRESTON

By virtue of the Preston Corporation Act, 1921, and of other their powers in that behalf them enabling the Mayor, Aldermen and Burgesses of the Borough of Preston (hereinafter referred to as "the Corporation") in consideration of the principal sum paid to the Treasurer of the said Borough by the Mortgagee(s) do hereby grant and assign unto the Mortgagee(s) such proportion of the revenues of the Corporation in the said Act defined as the principal sum bears or shall bear to the whole sum which is or shall be charged on the said revenues. To hold unto the Mortgagee(s) from the day of date of the receipt of the said Treasurer endorsed hereon until the principal sum shall be fully paid and satisfied with interest at the Municipal Building in the said Borough, the Mortgagee(s), the principal sum, the rate and dates of payment of interest, and date on which the principal sum is to be repaid being those set out in the Schedule hereto, provided that (i) the date of repayment may be extended and the rate of interest thereupon varied by agreement, such extension and variation being recorded in a memorandum to be issued to the Mortgagee(s) under the hand of the Town Clerk of the said Borough to take effect and operate as though originally in the Schedule; and (ii) if the said date of repayment falls on a Saturday, a Sunday or a day of public holiday the principal sum shall, unless the said date of repayment has been extended by agreement as aforesaid, be repaid on the next following day on which the said Municipal Building is open for business.

THE SCHEDULE

SCH. 2
—cont.

Mortgagee(s):

Principal sum: Pounds
£

Repayable on: First day of one thousand nine
hundred and
subject to the endorsement hereon.

Interest: per centum } pounds shillings £
per annum }

To be paid half-yearly on the First day of April, and the First day
of October in each year.

Town Clerk.

(Date)

I acknowledge that the principal sum has been received this
day of 19 .

.....
Treasurer of the said Borough of Preston.

FORM OF RECEIPT FOR USE WHEN PRINCIPAL SUM IS REPAYED

RECEIVED this day of 19 from the
Corporation of Preston, the sum of pounds, being
the principal sum secured by the within Mortgage, all interest due
thereon having been paid, and this Mortgage is now delivered up as
paid.

£

Witness

Signatures in full of Mortgagee(s)

Name

.....

Address

.....

Occupation

.....

SCH. 2
—cont.

FORM OF TRANSFER OF MORTGAGE

I (the within-named) (of) in consideration of the sum of pounds paid to me by of (hereinafter referred to as “ the transferee ”) do hereby transfer to the transferee (his) executors administrators and assigns (the within-written security) (the mortgage number of the revenues of the Mayor Aldermen and Burgesses of the borough of Preston bearing date the day of) and all my right and interest under the same subject to the several conditions on which I hold the same at the time of the execution hereof and I the transferee for myself my executors administrators and assigns do hereby agree to take the said mortgage security subject to the same conditions.

Dated this day of one thousand nine hundred and

Section 64.

SCHEDULE 3

PART I
CATTLE MARKETS

	s.	d.
For each horse, pony, bull, bullock, cow or other beast or animal whether sold or not	2	0
For each calf		6
For sheep, rams, lambs or goats per score	8	0
For each sheep, ram, lamb or goat under a score		6
For each fat pig	1	0
For each pig being a store pig or weaner		6

PART II

FAIRS AND MARKETS (OTHER THAN CORN MARKET AND CATTLE MARKETS)
s. d.

From every person occupying any space not specifically let on a tenancy by any shop, stall, bench, vehicle, basket, box, barrow, cart, van, shed, tent, booth or otherwise for the purpose of exposing for sale any goods whatsoever or for the purpose of any exhibition, amusement or recreation for every superficial square foot or fractional part of a superficial square foot of space so occupied the daily sum of	6
From every person exposing for sale any goods whatsoever who shall not otherwise be chargeable under this Part of this schedule as occupying any ground space the daily sum of	20 0

PART III

SCH. 3
—cont.

WEIGHING

(a) For goods not on a vehicle—	s.	d.
For any quantity not exceeding 28 lbs. avoirdupois ...		3
For any quantity exceeding 28 lbs. but not exceeding 56 lbs. avoirdupois		6
For any quantity exceeding 56 lbs. but not exceeding 112 lbs. avoirdupois		9
For any quantity exceeding 112 lbs. avoirdupois for every 112 lbs. or fractional part thereof		9
(b) For weighing vehicles with or without the loading thereof—		
Under 1 ton	1	0
And in addition for each ton or fraction of a ton over 1 ton		6

SCHEDULE 4

Section 88.

SECTIONS OF ACT OF 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of “provide”.
283	Notices to be in writing; forms of notices, etc.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.
341	Power to apply provisions of Act to Crown property.

SCH. 4
—cont.

PART II
SECTIONS APPLIED TO PARTS IV AND V OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments.
292	Power to make a charge in respect of establishment expenses.
293	Recovery of expenses, &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging order.
329	Saving for certain provisions of the Land Charges Act, 1925.

PART III
SECTION APPLIED TO PART V AND SECTION 72 OF THIS ACT

Section	Marginal note
287	Power to enter premises.

PART IV
SECTION APPLIED TO SECTION 37 OF THIS ACT

Section	Marginal note
299	Inclusion of several sums in one complaint, etc.

Table of Statutes referred to in this Act.

Short title	Session and chapter
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Harbours Docks and Piers Clauses Act, 1847	10 & 11 Vict. c. 27.
Cemeteries Clauses Act, 1847	10 & 11 Vict. c. 65.
Ribble Navigation Act, 1853	16 & 17 Vict. c. clxx.
Explosives Act, 1875	38 & 39 Vict. c. 17.
Public Health Act, 1875	38 & 39 Vict. c. 55.

Short title	Session and chapter
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Public Health (Interments) Act, 1879 ...	42 & 43 Vict. c. 31.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Ribble Navigation and Preston Dock Act, 1883	46 & 47 Vict. c. cxv.
Ribble Navigation &c. Act, 1888 ...	51 & 52 Vict. c. clxxiii.
Ribble Navigation Act, 1889	52 & 53 Vict. c. lxxxiii.
Ribble Navigation Act, 1890	53 & 54 Vict. c. xlii.
Ribble Navigation Act, 1892	55 & 56 Vict. c. xci.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Ribble Navigation Act, 1896	59 & 60 Vict. c. cliv.
Ribble Navigation Act, 1905	5 Edw. 7 c. cxvii.
Merchant Shipping Act, 1906	6 Edw. 7 c. 48.
Cinematograph Act, 1909	9 Edw. 7 c. 30.
Perjury Act, 1911	1 & 2 Geo. 5 c. 6.
Preston Corporation Act, 1914	4 & 5 Geo. 5 c. lxxii.
Preston Corporation Act, 1921	11 & 12 Geo. 5 c. xxv.
Land Charges Act, 1925	15 & 16 Geo. 5 c. 22.
Rating and Valuation Act, 1925	15 & 16 Geo. 5 c. 90.
Petroleum (Consolidation) Act, 1928 ...	18 & 19 Geo. 5 c. 32.
Land Drainage Act, 1930	20 & 21 Geo. 5 c. 44.
Preston Corporation Act, 1931	21 & 22 Geo. 5 c. xiii.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Preston Corporation Act, 1933	23 & 24 Geo. 5 c. ix.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Local Government Superannuation Act, 1937	1 Edw. 8 & 1 Geo. 6 c. 68.
Ministers of the Crown (Transfer of Functions) Act, 1946	9 & 10 Geo. 6 c. 31.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Electricity Act, 1947	10 & 11 Geo. 6 c. 54.
Preston Corporation Act, 1947	10 & 11 Geo. 6 c. xlv.
Sea Fish Industry Act, 1951	14 & 15 Geo. 6 c. 30.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Cinematograph Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 68.
Preston Corporation Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. xlvii.
Post Office Act, 1953	1 & 2 Eliz. 2 c. 36.
Housing Act, 1957	5 & 6 Eliz. 2 c. 56.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.
Mental Health Act, 1959	7 & 8 Eliz. 2 c. 72.
Road Traffic Act, 1960	8 & 9 Eliz. 2 c. 16.
Road Traffic and Roads Improvement Act, 1960	8 & 9 Eliz. 2 c. 63.
Land Compensation Act, 1961	9 & 10 Eliz. 2 c. 33.
Factories Act, 1961	9 & 10 Eliz. 2 c. 34.
Public Health Act, 1961	9 & 10 Eliz. 2 c. 64.
Vehicles (Excise) Act, 1962	10 & 11 Eliz. 2 c. 13.
Town and Country Planning Act, 1962 ...	10 & 11 Eliz. 2 c. 38.

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